# IN THE SUPREME COURT OF BRITISH COLUMBIA

Citation: *R. v. Ejigu,*
2016 BCSC 1487

Date: 20160815
Docket: 26260
Registry: Vancouver

**Regina**

v.

**Ayelech Ejigu**

Before: The Honourable Mr. Justice Davies

## Ruling on Constitutional Challenge to the NCRMD Provisions of s. 16 of the *Criminal Code*

| | |
|---|---|
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## I. INTRODUCTION

[1] The accused, Ayelech Ejigu is charged with second degree murder in the stabbing to death of Bayush Hagos in Burnaby, B.C. in September of 2011.

[2] Ms. Hagos was a social worker in whose apartment Ms. Ejigu was staying in the fall of 2011. Ms. Ejigu was on bail for the attempted murder of her husband in Fort St. John in 2009 of which she was eventually acquitted. That trial had commenced but had been adjourned and was not concluded until after Ms. Hagos was killed.

[3] In the early morning of September 1, 2011 Ms. Ejigu killed Ms. Hagos by stabbing her 77 times with a kitchen knife. She then stabbed herself a number of times inflicting several superficial wounds.

[4] When police and ambulance personnel arrived Ms. Ejigu was found on the balcony of the apartment covered in blood. When taken by ambulance to the hospital she was agitated, flailing her arms around and was screaming incomprehensibly.

[5] All of the evidence upon which the Crown and defence rely in this case has been adduced. It establishes beyond a reasonable doubt that Ms. Ejigu killed Ms. Hagos by stabbing her to death.

[6] The only issue in this case is Ms. Ejigu's mental state at the time of the killing.

[7] Final argument has been adjourned pending consideration of the constitutional issues that are the subject of this ruling that will decide both the onus and burden of proof that will apply to the determination of that issue.

[8] The Crown will allege that the evidence establishes that Ms. Ejigu intended to kill Ms. Hagos.

[9] Ms. Ejigu will assert that the evidence does not establish that when she killed Ms. Hagos she did so with the requisite *mens rea* for murder.

[10] In doing so, she will rely upon what are known as the Not Criminally Responsible on Account of Mental Disorder ("NCRMD") provisions of s. 16 of *Criminal Code,* R.S.C. 1985, c. C-46 [*Code*], that provide:

> Defence of mental disorder
>
> 16 (1) No person is criminally responsible for an act committed or an omission made while suffering from a mental disorder that rendered the person incapable of appreciating the nature and quality of the act or omission or of knowing that it was wrong.
>
> Presumption
>
> (2) Every person is presumed not to suffer from a mental disorder so as to be exempt from criminal responsibility by virtue of subsection (1), until the contrary is proved on the balance of probabilities.
>
> Burden of proof
>
> (3) The burden of proof that an accused was suffering from a mental disorder so as to be exempt from criminal responsibility is on the party that raises the issue.
>
> [My emphasis.]

[11] Ms. Ejigu testified on her own behalf. She testified that she has some recall of events prior to stabbing Ms. Hagos to death but professes no recall of the killing itself.

[12] In her defence, Ms. Ejigu also adduced the evidence of two psychiatrists, Drs. Jeannette Smith and Mark Riley. Each opined that at the time of the killing Ms. Ejigu was suffering from a mental disorder that rendered her incapable of appreciating the nature and quality or her actions or of knowing that what she was doing was wrong.

[13] In reply, the Crown adduced the evidence of a psychiatrist, Dr. Stanley Semrau. He offered a contrary opinion.

[14] Because this is a ruling on the constitutional validity of the NCRMD provisions of the *Code*, I will not discuss the substance of the opinions of any of the psychiatrists who testified or the other evidence adduced by the Crown or the defence concerning Ms. Ejigu's mental state at the time of the killing, unless such evidence is of specific importance to the constitutional issues raised by Ms. Ejigu.

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## II. ISSUES

[15] Ms. Ejigu's constitutional challenge is brought with respect to the provisions of ss. 16(2) and (3) of the *Code*.

[16] Because Ms. Ejigu alleges that she was "suffering from a mental disorder at the time of the killing" the combined effect of the impugned provisions is to displace the presumption of innocence by reversing the onus of proof from the Crown to the accused and by requiring proof by the accused on a balance of probabilities.

[17] Ms. Ejigu's constitutional challenge to those reverse onus provisions is multi-faceted.

[18] As I will later discuss in more detail Ms. Ejigu invokes sections 7, 11(d) and 15 of the *Canadian Charter of Rights and Freedoms,* Part I of the *Constitution Act, 1982,* being Schedule B to the *Canada Act 1982* (UK), 1982, c. 11 (the "*Charter"*) in seeking a declaration that the provisions of ss. 16(2) and (3) of the *Code* are of no force and effect and cannot be justified under s. 1 of the *Charter.*

[19] The result of such a declaration would be to require the Crown to prove beyond a reasonable doubt that the defence of NCRMD does not apply to absolve Ms. Ejigu of criminal responsibility in the killing of Ms. Hagos.

## III. ANALYSIS AND DISCUSSION

[20] Determination of the issues raised by Ms. Ejigu's constitutional challenge requires consideration of existing Supreme Court of Canada jurisprudence governing the issues engaged, the principles which govern the question of when a lower court may revisit a constitutional decision of a higher court and the specific substantive issues now raised.

### *A. Existing Authority*

[21] The issues raised by Ms. Ejigu's constitutional challenge are not free from authority.

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[22] In *R. v. Chaulk,* [1990] 3 S.C.R. 1303; 62 C.C.C. (3d) 193; [1990] S.C.J. No. 139 [*Chaulk* cited to QL], the Supreme Court of Canada ruled that the provisions of s. 16(4) of the *Code* (which then included the presumption of sanity and the need for an accused to disprove sanity on a balance of probabilities) violated the presumption of innocence provisions embodied in s. 11(d) of the *Charter.*

[23] Chief Justice Lamer (for the majority) wrote at para. 17:

> 17. There is controversy in academic circles as to whether insanity operates to negate a "condition precedent" to legal responsibility or whether it operates as a defence in the sense that it negates *mens rea*. Let me begin by saying that I will use the term "defence" to describe a claim of insanity under s. 16, but only in the broad, general sense of the term which means "any answer which defeats a criminal charge" (Law Reform Commission of Canada, Working Paper 29, *Criminal Law: The General Part -- Liability and Defences* (1982), at p. 35), or "any claim which, if accepted, would necessitate an acquittal" (Colvin, *Principles of Criminal Law* (1986), at p. 163).

[24] I will also use the term “defence” in respect of the NCRMD provisions of s. 16 of the *Code* in that general sense of the term.

[25] After discussing examples of the many ways in which the insanity defence could arise (at para. 22), the Chief Justice wrote at para. 23:

> 23. The foregoing examples illustrate that the insanity defence can be raised in a number of different ways, depending on the mental condition of the accused. All of these examples have one thing in common however. Each is based on an underlying claim that the accused has no capacity for criminal intent because his or her mental condition has brought about a skewed frame of reference. When a person claims insanity, he or she may well be denying the existence of *mens rea* in the particular case or putting forward an excuse which would preclude criminal liability in the particular case; but he is also making a more basic claim which goes beyond *mens rea* or *actus reus* in the particular case -- he is claiming that he does not fit within the normal assumptions of our criminal law model because he does not have the capacity for criminal intent. Such a claim may or may not be successful. If the incapacity is such that it fits into the defence of insanity encompassed in s. 16, it will preclude a conviction.

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[26] Concerning the disputed question of whether the provisions of s. 16(4) of the *Code* violated the presumption of innocence, Chief Justice Lamer wrote at para. 39:

> 39. … If an accused is found to have been insane at the time of the offence, he will not be found guilty; thus the "fact" of insanity precludes a verdict of guilty. Whether the claim of insanity is characterized as a denial of *mens rea*, an excusing defence or, more generally, as an exemption based on criminal incapacity, the fact remains that sanity is essential for guilt. Section 16(4) allows a factor which is essential for guilt to be presumed, rather than proven by the Crown beyond a reasonable doubt. Moreover, it requires an accused to disprove sanity (or prove insanity) on a balance of probabilities; it therefore violates the presumption of innocence because it permits a conviction in spite of a reasonable doubt in the mind of the trier of fact as to the guilt of the accused.
>
> [Emphasis in original.]

[27] That conclusion made it necessary for the majority to then consider whether the offending provisions could be justified under s. 1 of the *Charter*.

[28] In concluding that s. 16(4) was a reasonable limit on the presumption of innocence embodied in s. 11(d) of the *Charter*, the majority held (at para. 57) that the objective of the section was “to avoid placing an impossible burden of proof on the Crown to prove sanity and thus secure the conviction of the guilty”.

[29] The Court then decided (at para. 60) that the stated objective was rationally connected to the means chosen (the reverse onus and the burden of proof on a balance of probabilities) to achieve it.

[30] In then discussing whether the provisions impaired s. 11(d) “as little as possible”, Chief Justice Lamer postulated alternatives that could possibly intrude less upon the presumption of innocence than that chosen by Parliament, but concluded by stating at para. 70:

> 70. In enacting s. 16(4), Parliament may not have chosen the absolutely least intrusive means of meeting its objective, but it has chosen from a range of means which impair s. 11 (*d*) as little as is reasonably possible. Within this range of means it is virtually impossible to know, let alone be sure, which means violate *Charter* rights the least.

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[31] When addressing whether the detrimental effects of s. 16(4) of the *Code* on the presumption of innocence were proportional to the objective, the Chief Justice wrote at paras. 72 to 74:

> 72. The presumption of sanity and the reversal of onus embodied in s. 16(4) exist in order to avoid placing a virtually impossible burden on the Crown. The burden on the accused is not the full criminal burden; rather, the accused is required to prove his or her insanity on a balance of probabilities. **If an accused were able to rebut the presumption merely by raising a reasonable doubt as to his or her insanity, the very purpose of the presumption of sanity would be defeated and the objective would not be achieved.** Any other means of achieving the objective could also give rise to violations of other *Charter* rights.
>
> 73. Section 16(4) represents an accommodation of three important societal interests: avoiding a virtually impossible burden on the Crown; convicting the guilty; and acquitting those who truly lack the capacity for criminal intent. The result of this compromise is that some guilty people will be acquitted and will be dealt with via the "L.G.W. system", and some insane (and therefore not guilty) people will be convicted and will be stigmatized and punished as criminals. Of course, this would still be the case if the burden on the accused were lowered so as to require him or her to raise a reasonable doubt as to insanity; some insane accused may be unable even to raise a reasonable doubt as to insanity. This result is the inevitable consequence of the uncertainty of our scientific knowledge and of our commitment (as expressed in s. 11 (*d*)) not to convict those who were insane at the time of the offence. The alternatives to this compromise raise their own *Charter* problems and give no guarantee as to whether they will achieve the objective. As I have mentioned above, the *Charter* does not require Parliament to "roll the dice" in its effort to achieve "pressing and substantial" objectives in order to adopt the absolutely <u>least</u> intrusive legislative provision.
>
> 74. While the effect of s. 16(4) on the presumption of innocence is clearly detrimental, given the importance of the objective that the Crown not be encumbered with an unworkable burden and given that I have concluded above that s. 16(4) limits s. 11 (*d*) as little as is reasonably possible, it is my view that there is proportionality between the effects of the measure and the objective.
>
> [Underlined emphasis in original. Bold emphasis mine.]

[32] He then concluded that the impugned provisions were:

> … a reasonable limit on the presumption of innocence which can be upheld under s. 1 of the *Charter.*

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### *B. The Role of Stare Decisis*

[33] But for the recent decisions of the Supreme Court of Canada in *Bedford v. Canada (Attorney General),* 2013 SCC 72 [*Bedford*] and *Carter v. Canada (Attorney General),* 2015 SCC 5 [*Carter*], the Court's decision in *Chaulk* would be a complete answer to the constitutional challenge brought by Ms. Ejigu.

[34] That was indeed the ruling of the Manitoba Court of Appeal in *R. v. Proctor* (1992), 75 Man. R. (2d) 217 (C.A.) and of the Ontario Court of Appeal in *R. v. McCullough*, 1998 CanLII 6208 (Ont. C.A.).

[35] However, in *Carter* citing *Bedford* the Court unanimously affirmed that in two circumstances lower courts may not be bound to follow the decisions of higher courts, including those of the Supreme Court of Canada. In doing so the Court wrote at paras. 43 and 44:

> [43] Canada and Ontario argue that the trial judge was bound by *Rodriguez* and not entitled to revisit the constitutionality of the legislation prohibiting assisted suicide. Ontario goes so far as to argue that "vertical *stare decisis*" is a *constitutional* principle that requires all lower courts to rigidly follow this Court's *Charter* precedents unless and until this Court sets them aside.
>
> [44] The doctrine that lower courts must follow the decisions of higher courts is fundamental to our legal system. It provides certainty while permitting the orderly development of the law in incremental steps. However, *stare decisis* is not a straitjacket that condemns the law to stasis. Trial courts may reconsider settled rulings of higher courts in two situations: (1) where a new legal issue is raised; and (2) where there is a change in the circumstances or evidence that "fundamentally shifts the parameters of the debate" (*Canada (Attorney General) v. Bedford*, 2013 SCC 72, [2013] 3 S.C.R. 1101, at para. 42).

[36] Specifically germane to the issues raised by Ms. Ejigu's constitutional challenge is the observation of Chief Justice McLachlin in *Bedford* at para. 42 that:

> In my view, a trial judge can consider and decide arguments based on *Charter* provisions that were not raised in the earlier case; this constitutes a new legal issue.

[37] The existence of new *Charter* issues is important in this case because unlike *Chaulk*, which was decided solely in respect of the violation of the accused's s. 11(d)

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*Charter* right to be presumed innocent until proven guilty, Ms. Ejigu has also invoked her s. 7 *Charter* right to "life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice" as well as her s. 15 *Charter* right to "the equal protection and equal benefit of the law without discrimination" on various of the enumerated grounds in s. 15.

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[38] Of importance also to the issues now before me are the Chief Justice's further observations in *Bedford* at paras. 43 and 44 that :

> [43] The intervener, the David Asper Centre for Constitutional Rights, argues that the common law principle of *stare decisis* is subordinate to the Constitution and cannot require a court to uphold a law which is unconstitutional. It submits that lower courts should not be limited to acting as "mere scribe[s]", creating a record and findings without conducting a legal analysis (I.F., at para. 25).
>
> [44] I agree. As the David Asper Centre also noted, however, a lower court is not entitled to ignore binding precedent, and the threshold for revisiting a matter is not an easy one to reach. In my view, as discussed above, this threshold is met when a new legal issue is raised, or if there is a significant change in the circumstances or evidence. This balances the need for finality and stability with the recognition that when an appropriate case arises for revisiting precedent, a lower court must be able to perform its full role.
>
> [My emphasis.]

[39] The Court's decisions in *Carter* and *Bedford* thus underscore the following important principles that lower courts must bear in mind when asked to depart from otherwise binding authority in deciding constitutional issues. Those principles are that:

1) A lower court is not strictly precluded by *stare decisis* from revisiting an issue previously decided by a higher court;

2) The threshold for doing so is, however, a high one and is met only if:

    a) new legal issues, including arguments on *Charter* provisions not previously addressed or as a consequence of significant developments in the law, are raised; or

b) there is a significant change in the circumstances or evidence upon which the earlier decision was based which "fundamentally shifts the parameters of the debate".

3) While both pre-conditions to reconsideration may be met in a given case, *Bedford* establishes that only one is necessary.

[40] With those observations in mind, I will briefly summarize the positions of the parties on this application before then proceeding to the substantive consideration of them in the context of the *Bedford/Carter* paradigm and the otherwise binding decision of the Supreme Court of Canada in *Chaulk.*

### *C. The Positions of the Parties*

[41] Ms. Ejigu submits that *Chaulk* is not determinative of her challenge to the constitutional validity of ss. 16(2) and (3) of the *Code* for three principal reasons. She relies upon:

1) The evolution of *Charter* litigation in the twenty-six years since *Chaulk* was decided;

2) The existence of her s. 7 and s. 15 *Charter* rights that were not raised in *Chaulk;*

3) Changes to the legal and evidentiary circumstances bearing upon the s. 1 *Charter* analysis in *Chaulk* in her circumstances in which she has been under the control of the state in medical institutions since the killing of Ms. Hagos, which she asserts fundamentally undermine the "impossible burden on the Crown" justification for the violation of the presumption of innocence.

[42] Ms. Ejigu thus seeks a declaration that ss. 16(2) and (3) of the *Code* are of no force or effect, the consequence of which would be that the Crown bears the onus of proving beyond a reasonable doubt that the defence of NCRMD does not apply to preclude a finding of criminal responsibility for an offence charged.

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[43] Although Ms. Ejigu had initially sought the alternative remedies of "reading down" the provisions of ss. 16(2) and (3) of the *Code* to require her to raise a reasonable doubt as to her mental state at the time of the offence, or in the further alternative to impose an evidentiary burden upon her as to her mental state, those submissions were subsequently properly abandoned by her because such remedies would amount to impermissible re-writing of the offending provisions. See: *R. v. Heywood*, [1994] 3 S.C.R. 761 [*Heywood*] and *Schachter v. Canada*, [1992] 2 SCR 679 [*Schachter*].

[44] Similarly, to the extent that such alternate remedies would amount to a constitutional exemption, such exceptional relief is precluded by the Supreme Court of Canada's decision in *R. v. Ferguson,* 2008 SCC 6.

[45] In response to Ms. Ejigu's submissions, the Crown submits that:

1) The arguments advanced by Ms. Ejigu under ss. 7 and 15 of the *Charter* simply re-cast those that were made by the accused under s. 11(d) in *Chaulk;*

2) No argument is available under s. 7 because no violation of a principle of fundamental justice has been argued by Ms. Ejigu that is not covered by a specific *Charter* provision [s. 11(d)] and no argument lies under s. 15 on the evidence or at law;

3) Ms. Ejigu's individual circumstances which have resulted in evidence being available to the Crown beyond that contemplated in *Chaulk* are insufficient to meet the required threshold to revisit the Court's s. 1 ruling in *Chaulk*.

[46] The Crown thus submits that Ms. Ejigu's constitutional challenge must be dismissed under the binding authority of *Chaulk.*

[47] I will next consider the specific arguments addressed by Ms. Ejigu in respect of each section of the *Charter* she has invoked in support of her constitutional submissions.

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[48] I will then address whether she has met the required threshold to re-visit the s. 1 ruling in *Chaulk* and, if so, whether the changes to the law and evidence upon which she relies must result in a finding that the stated justification can no longer apply.

### *D. Do ss. 16(2) and (3) of the Code violate Ms. Ejigu's s. 7 Charter Rights?*

[49] Section 7 of the *Charter* provides:

> 7. Everyone has the right to life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice.

[50] Ms. Ejigu submits that ss. 16(2) and (3) of the *Code* violate her s. 7 *Charter* right not to be deprived of her liberty by imprisonment and the threat of imprisonment for the crime of second degree murder because the burden of proof and reverse onus provisions of the impugned subsections do not accord with the principles of fundamental justice.

[51] In making that submission counsel for Ms. Ejigu relies upon four specific principles of fundamental justice that have been identified by the Supreme Court of Canada. They are:

1) The presumption of innocence;

2) The prohibition against overly broad or grossly disproportionate laws;

3) Those who are not criminally responsible at the time of an offence should not be convicted; and

4) The right to silence and the protection against self-incrimination.

[52] I will address the issues raised by Ms. Ejigu in respect of the alleged breach of each of those fundamental principles.

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*1) The presumption of innocence*

[53] Counsel for Ms. Ejigu recognizes that the presumption of innocence is enshrined as a stand-alone right under s. 11(d) of the *Charter* and that in *Chaulk* the Supreme Court of Canada determined that the reverse onus and burden of proof requirements of the predecessor provisions to ss. 16(2) and (3) of the *Code* violated s. 11(d).

[54] The submission advanced by Ms. Ejigu under s. 7 is that s. 11(d) does not exhaust the ambit of the presumption as a fundamental principle of justice at all stages, as opposed to only the trial stage, of the criminal process.

[55] That submission is based upon the observations of Chief Justice Lamer in *R. v. Pearson*, [1992] 3 S.C.R. 665, [1992] S.C.J. No. 99 [*Pearson* cited to QL] at paras. 30 and 31 that:

> 30. Section 11(d) of the *Charter* sets out the presumption of innocence in the context of its operation at the trial of an accused person. As I stated in *Dubois v. The Queen*, [1985] 2 S.C.R. 350, at p. 357:
>
> > Section 11(d) imposes upon the Crown the burden of proving the accused's guilt beyond a reasonable doubt as well as that of making out the case against the accused before he or she need respond, either by testifying or by calling other evidence.
>
> 31. This operation of the presumption of innocence at trial, where the accused's guilt of an offence is in issue, does not, in my opinion, exhaust the operation in the criminal process of the presumption of innocence as a principle of fundamental justice. The presumption of innocence, as a substantive principle of fundamental justice "protects the fundamental liberty and human dignity of any and every person accused by the State of criminal conduct": *Oakes*, *supra*, at p. 119. In my view, the presumption of innocence is an animating principle throughout the criminal justice process. The fact that it comes to be applied in its strict evidentiary sense at trial pursuant to s. 11(d) of the *Charter*, in no way diminishes the broader principle of fundamental justice that the starting point for any proposed deprivation of life, liberty or security of the person of anyone charged with or suspected of an offence must be that the person is innocent.

[56] Although I do not doubt that the presumption of innocence exists and may be engaged as a principle of fundamental justice outside of the ambit of s. 11(d), where the focus is upon the rights of an accused at trial, I fail to see how the broader context identified by the Chief Justice in *Pearson* assists in informing the present

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inquiry where what is at issue in this case is, in substance and in fact, infringement of the presumption at trial.

[57] In *Canada (Attorney General) v. Whaling,* 2014 SCC 20 [*Whaling*], at para. 76, Wagner J. wrote for the Court:

> [76] When both s. 7 and a specific guarantee under the *Charter* are pleaded, this Court has generally shown a preference for dealing with the specific guarantee: *R. v. Harrer*, [1995] 3 S.C.R. 562, at para. 13. In my view, the following comments from *R. v. Généreux*, [1992] 1 S.C.R. 259, though made in respect of s. 11(*d*) rather than s. 11(*h*), are relevant:
>
> > The appellant places reliance upon both s. 11(*d*) and s. 7 of the *Charter*. However, the s. 7 submission can be dealt with very briefly. In *Re B.C. Motor Vehicle Act*, [1985] 2 S.C.R. 486, this Court decided that ss. 8 to 14 of the *Charter*, the "legal rights", are specific instances of the basic tenets of fairness upon which our legal system is based, and which are now entrenched as a constitutional minimum standard by s. 7. Consequently, in the context of the appellant's challenge to the independence of the General Court Martial before which he was tried, s. 7 does not offer greater protection than the highly specific guarantee under s. 11(*d*). I do not wish to be understood to suggest by this that the rights guaranteed by ss. 8 to 14 of the *Charter* are exhaustive of the content of s. 7, or that there will not be circumstances where s. 7 provides a more compendious protection than these sections combined. However, in this case, the appellant has complained of a specific infringement which falls squarely within s. 11(*d*), and consequently his argument is not strengthened by pleading the more open language of s. 7. [Emphasis added [in *Whaling*]; p. 310.]
>
> In *R. v. Pearson*, [1992] 3 S.C.R. 665, at p. 688, this Court applied the same reasoning in the context of a s. 11(*e*) claim. Section 11(*h*) protects against the specific infringement alleged in the case at bar: the retrospective legislative imposition of delayed parole eligibility, which has the effect of punishing the offender anew. I therefore decline to address the arguments with respect to s. 7.

[58] Since s. 11(d) protects against the specific infringement at issue in this case, I am satisfied that argument concerning the possibly broader application of the presumption of innocence identified in *Pearson* will not assist in the resolution of the issues to be decided.

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*2) The prohibition against overly broad or grossly disproportionate laws*

[59] In *Carter* at paras. 71 and 72 the Court wrote:

> [71] Section 7 does not promise that the state will never interfere with a person's life, liberty or security of the person — laws do this all the time — but rather that the state will not do so in a way that violates the principles of fundamental justice.
>
> [72] Section 7 does not catalogue the principles of fundamental justice to which it refers. Over the course of 32 years of *Charter* adjudication, this Court has worked to define the minimum constitutional requirements that a law that trenches on life, liberty or security of the person must meet (*Bedford*, at para. 94). While the Court has recognized a number of principles of fundamental justice, three have emerged as central in the recent s. 7 jurisprudence: laws that impinge on life, liberty or security of the person must not be arbitrary, overbroad, or have consequences that are grossly disproportionate to their object.

[60] Counsel for Ms. Ejigu submits that ss. 16(2) and (3) of the *Code* both overreach in pursuing the objective of the provisions and are grossly disproportionate because the reverse onus applies in instances where the Crown is not faced with the "impossibly onerous" burden identified in *Chaulk* as the justification for limiting the presumption of innocence.

[61] On the issue of alleged overbreadth, Ms. Ejigu relies on the fact that in her case since the killing of Ms. Hagos she has been under the control of the state in state institutions. The Crown thus has had full access to all of her medical records and, after putting her mental state in issue, at the Crown's request she agreed to be interviewed by Dr. Semrau.

[62] Ms. Ejigu asserts that in those circumstances the reversal of the onus and burden of proof is overly broad because it is unrelated to the objective of the impugned provisions identified in *Chaulk.*

[63] As to gross disproportionality, Ms. Ejigu relies on the observations of Chief Justice McLachlin in *Bedford* at paras. 121 and 122 that:

> [121] Gross disproportionality under s. 7 of the *Charter* does *not* consider the beneficial effects of the law for society. It balances the negative effect on the individual against the purpose of the law, *not* against societal benefit that might flow from the law. As this Court said in *Malmo-Levine*:

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> In effect, the exercise undertaken by Braidwood J.A. was to balance the law's salutary and deleterious effects. In our view, with respect, that is a function that is more properly reserved for s. 1. These are the types of social and economic harms that generally have no place in s. 7. [para. 181]
>
> [122] Thus, gross disproportionality is not concerned with the number of people who experience grossly disproportionate effects; a grossly disproportionate effect on one person is sufficient to violate the norm.

[64] She also relies upon the statement of the Court in *Carter* at para. 89 that:

> [89] This principle is infringed if the impact of the restriction on the individual's life, liberty or security of the person is grossly disproportionate to the object of the measure. As with overbreadth, the focus is not on the impact of the measure on society or the public, which are matters for s. 1, but on its impact on the rights of the claimant. The inquiry into gross disproportionality compares the law's purpose, "taken at face value", with its negative effects on the rights of the claimant, and asks if this impact is completely out of sync with the object of the law (*Bedford*, at para. 125). The standard is high: the law's object and its impact may be incommensurate without reaching the standard for *gross* disproportionality (*Bedford*, at para. 120; *Suresh v. Canada (Minister of Citizenship and Immigration)*, 2002 SCC 1, [2002] 1 S.C.R. 3, at para. 47).

[65] Ms. Ejigu submits that the provisions of ss. 16(2) and (3) of the *Code* have a grossly disproportionate effect upon her, as a mentally ill woman facing a second-degree murder charge, "being called upon to produce psychiatric opinion evidence that necessarily requires proof of its factual foundation evidence that is just as available, if not more accessible, to the state as it is to the Applicant''.

[66] In reply to Ms. Ejigu's submissions that the impugned provisions are overly broad and grossly disproportionate, the Crown submits that the arguments now advanced by Ms. Ejigu are in respect of each, in essence, re-formulations of the arguments advanced under s. 11(d) that are precluded from consideration by me because of the Court's s. 1 analysis in *Chaulk.*

[67] More specifically, the Crown asserts that Ms. Ejigu's "overbreadth" argument must fail because:

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1) the Court's s. 1 analysis in *Chaulk* establishes that the objective of ss.16(2) and (3) of the *Code* is to avoid placing an impossible burden of proof on the Crown to prove sanity and thus secure the conviction of the guilty; and

2) Ms. Ejigu has not established that the means used to accomplish that objective "bear no connection" to it.

[68] In making that submission the Crown relies on the decision of the Supreme Court of Canada in *R. v. Appulonappa*, 2015 SCC 59 in which McLachlin, C.J.C. stated at paras. 26 and 27:

> [26] A law is said to violate our basic values by being overbroad when "the law goes too far and interferes with some conduct that bears no connection to its objective": *Canada (Attorney General) v. Bedford*, 2013 SCC 72, [2013] 3 S.C.R. 1101, at para. 101. As stated in *Bedford*, "[o]verbreadth allows courts to recognize that the law is rational in some cases, but that it overreaches in its effect in others": para. 113; see also *Carter v. Canada (Attorney General)*, 2015 SCC 5, [2015] 1 S.C.R. 331, at para. 85.
>
> [27] The first step in the overbreadth inquiry is to determine the object of the impugned law. The second step is to determine whether the law deprives individuals of life, liberty or security of the person in cases that do not further that object. To the extent the law does this, it deprives people of s. 7 rights in a manner that infringes the principles of fundamental justice.

[69] The Crown submits that since the objective of the impugned NCRMD provisions is to avoid placing an impossible burden upon the Crown to prove sanity, the means used – pacing an onus upon the accused to establish insanity on a balance of probabilities – is directly connected to the legislated objective that was scrutinized and endorsed as constitutionally justifiable in *Chaulk*.

[70] The Crown submits that while meeting that evidentiary burden may be difficult for persons in similar situations to that of Ms. Ejigu, evaluation of the NCRMD provisions on the overbreadth analysis postulated by her would require a case by case consideration of whether in the specific circumstances the "impossible burden on the Crown to prove sanity" exists.

[71] The Crown thus submits that while it may be difficult for an accused person to meet the reverse onus provisions of ss. 16(2) and (3) of the *Code*, that difficulty does

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not meet the test of constitutional overbreadth for a law of general application and is precluded by the Court's s. 1 analysis in *Chaulk*.

[72] Concerning Ms. Ejigu's grossly disproportionate argument, the Crown does not dispute the existence of the constitutional proposition advanced but says that in the circumstances of this case the test for gross disproportionality established by the authorities is not met.

[73] In making that submission the Crown relies upon the observations of Chief Justice McLachlin in *Bedford* at para. 120 immediately preceding those relied upon by Ms. Ejigu at paras. 121 and 122 (quoted at para. 63 above) that:

> [120] Gross disproportionality asks a different question from arbitrariness and overbreadth. It targets the second fundamental evil: the law's effects on life, liberty or security of the person are so grossly disproportionate to its purposes that they cannot rationally be supported. The rule against gross disproportionality only applies in extreme cases where the seriousness of the deprivation is totally out of sync with the objective of the measure. This idea is captured by the hypothetical of a law with the purpose of keeping the streets clean that imposes a sentence of life imprisonment for spitting on the sidewalk. The connection between the draconian impact of the law and its object must be entirely outside the norms accepted in our free and democratic society.
>
> [My emphasis.]

[74] The Crown submits that ss. 16(2) and (3) of the *Code* "represent a rational and measured approach by the legislature to the issue of NCR applications" and that Ms. Ejigu's submissions are in substance a re-formulation of the s. 11(d) arguments in *Chaulk*.

[75] The Crown further asserts that the circumstances relied upon by Ms. Ejigu as making the reverse onus provisions grossly disproportionate in her case – the Crown's access to all of her post-offence institutional medical records and her interview by Dr. Semrau at the behest of the Crown – do not address the "impossible burden of proving sanity beyond a reasonable doubt" objective identified in *Chaulk,* upon which the s. 1 analysis turned to allow an otherwise unconstitutional law to continue.

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[76] The Crown submits that even with that evidence being available to it the Crown faces an impossible burden to prove beyond a reasonable doubt that the defence of NCRMD does not apply in a given case because:

1) Only an accused control the contents of their mind and how much they choose to share of their recollection of the relevant events;

2) The Crown does not control when sanity is raised as an issue; and

3) Support for NCRMD defences usually (as in this case) involve the testimony of experts regarding sanity and the Crown cannot compel the accused to testify, thus potentially allowing the NCRMD defence to be raised based upon out of court self-serving hearsay.

[77] In summary, the Crown submits at paras. 40 and 41 of its written argument:

> 40. Even where the Crown has full access to all existing records the impossible burden remains so. s.16 is neither overly broad, nor grossly disproportionate. No law applies 100% equally to every person. The fact that more or less material may be available to the Crown does not make the burden possible.
>
> 41. The harm found in *Bedford* and *Carter* threatened the physical safety and wellbeing of the applicants. Here the best that can be said is persons like the applicant might have been able to raise a reasonable doubt, but are unable to meet the burden of proving insanity on a balance of probabilities. No other ill effect of s.16 has been identified by the Applicant. This is precisely the finding in *Chaulk* and this Court is bound by that ruling. The issues the Applicant complains of are covered under s.11(d) and as such are not covered by s.7.

[78] Obviously, much of the debate with respect to the s. 7 *Charter* arguments advanced by Ms. Ejigu concerning overbreadth and gross disproportionality concerns the extent to which the Court's s. 1 *Charter* analysis in *Chaulk* precludes a declaration that the provisions of ss. 16(2) and (3) of the *Code* are unconstitutional.

[79] I have concluded that Ms. Ejigu has failed to meet the burden of establishing that ss. 16(2) and (3) of the *Code* deprive her of liberty in a manner that is not connected to the law's objective or in a manner that is grossly disproportionate to the law's object.

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[80] I reach that conclusion not by reason of *stare decisis* with respect to the Court's determination in *Chaulk* that the predecessor provisions of s. 16 were saved by s. 1 (a matter which I will more specifically address later in these reasons), but because of the more narrow issue as to whether the findings of the majority of the Court concerning the objective of the impugned provisions are open for reconsideration by me.

[81] In my view, they are not. While the principles allowing reconsideration of the s. 1 ruling in *Chaulk* may be open to me based upon a *Bedford/Carter* analysis, the Court's determination that the "impossible burden on the Crown of proving sanity beyond a reasonable doubt" is the objective of the impugned provisions is not affected by any such analysis.

[82] When Ms. Ejigu's s. 7 overbreadth arguments are assessed with that legislative objective in mind, I cannot say that the imposition of a burden of proof on the accused to establish that they are NCRMD (insane) at the time of the commission of an offence is not connected to the legislative objective determined by the Court in *Chaulk*.

[83] Also, while the imposition of that burden on Ms. Ejigu may be harsh in circumstances where the Crown has relatively equal access to evidence related to her mental state in the years following the killing of Ms. Hagos and has had the opportunity to have Ms. Ejigu assessed by Dr. Semrau, I cannot say that the burden imposed on the accused to establish sanity at the time of the commission of an offence is totally out of sync with the law's object.

> *3) One who is not criminally responsible at the time of an offence should not be convicted*

[84] Counsel for Ms. Ejigu submits that, based upon the decisions of the Supreme Court of Canada in *R. v. Swain*, [1991] 1 S.C.R. 933, [1991] S.C.J. No. 32 [*Swain* cited to QL] and *R. v. Warsing*, [1998] 3 S.C.R. 579 [*Warsing*] as well as that of the Ontario Court of Appeal in *R. v. I.E.M.*, 173 C.C.C. (3d) 515, [2003] O.J. 953 [*I.E.M.* cited to QL], it is now recognized a principle of fundamental justice under s. 7 of the

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*Charter* that a person who is not criminally responsible at the time of an offence should not be convicted.

[85] Specific to the application to the offence of murder with which Ms. Ejigu is charged in this case, her counsel also relies on the decisions of the Supreme Court of Canada in *R. v. Vaillancourt*, [1987] 2 S.C.R. 636, [1987] S.C.J. No. 83 [*Vaillancourt* cited to QL] and *R. v Martineau*, [1990] 2 S.C.R. 633, [1990] S.C.J. No. 84 [*Martineau* cited to QL].

[86] In *Swain* the Court ruled that the common law rule permitting the Crown to lead evidence of the accused's sanity over and above the wishes of the accused violated s. 7 of the *Charter*. In deciding that issue Chief Justice Lamer wrote at para. 45:

> 45. I agree that it is a principle of fundamental justice that the criminal justice system not convict a person who was insane at the time of the offence. To the extent that it is a principle protected by the *Charter*, it is one of the individual rights included in s. 7. However, this principle of fundamental justice is not triggered by the accused's claim to his s. 7 rights under the *Charter* in this case. Here, the accused has proved that his liberty was denied in a manner which does not accord with the principle of fundamental justice that an accused must have control over the conduct of his or her defence. In my view, this concludes the matter. …
>
> [My emphasis.]

[87] In *Swain* the Court found that the violation of s. 7 resulting from the violation of the principle of fundamental justice that an accused must have control over the conduct of his or her defence was not saved by s. 1 of the *Charter*.

[88] Chief Justice Lamer then fashioned a "new common law rule" that precluded the Crown from leading evidence of insanity over the objections of the accused until the trier of fact had concluded that the accused was otherwise guilty, or if the accused's own defence had somehow put his mental capacity for criminal intent in issue.

[89] In *Warsing* the Court ruled that the accused in that case could raise the defence of NCRMD for the first time on appeal by way of fresh evidence. In

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upholding the decision of the Ontario Court of Appeal to allow the defence to be raised for the first time, Major J. for the majority wrote at paras. 59 and 60:

> 59 A second factor assisting the accused in raising the insanity defence for the first time on appeal is *Swain*, *supra*, and the legislative response to that decision. *Swain* recognized that it would be unfair to force the accused to plead insanity as an alternative defence, as this might prejudice both his claim of insanity and his claim of innocence. *Swain* allowed the accused to wait until a finding of guilt had been made before the defence of insanity had to be raised. While an accused is seldom allowed to "hold back" a defence in anticipation of using it on appeal if convicted, *Swain* provides that option and confirms that the policy concerns about raising an NCRMD defence for the first time on appeal are not stringent because of the nature of the defence of NCRMD. *Swain* confirms that it is a principle of fundamental justice that a person who was not criminally responsible at the time of the offence should not be convicted.
>
> 60 This procedure is an exception to the general rule, but the circumstances and evidence of this case run in favour of allowing the respondent to raise the defence of NCRMD for the first time at his appeal.
>
> [My emphasis.]

[90] In *I.E.M.,* the Ontario Court of Appeal also admitted fresh evidence on appeal in respect of the accused's application to raise the defence of NCRMD for the first time, citing (at para. 36) the fundamental principle of justice that a person who was not criminally responsible at the time of the offence should not be convicted.

[91] In *Vaillancourt,* which was decided before *Chaulk,* the Court considered the constitutionality of s. 213(d) of the *Code* under which an accused could be found guilty of murder without proof of subjective foresight or even objective foreseeability of the likelihood of death of the victim if that death was caused while the accused used a weapon or had one in his possession during the time he was committing or attempting to commit or "during or at the time of his flight after committing or attempting to commit" one of many enumerated offences. The majority held that the impugned provisions contravened both s. 7 and 11(d) of the *Charter* and was not saved by s. 1.

[92] In *Martineau,* which was decided three months before *Chaulk,* the Court considered the constitutionality of s. 213(a) of the *Code.*

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[93] Lamer C.J. (who also wrote the majority decision in *Chaulk*) for the majority in *Martineau* described the impugned provisions in the following terms at para. 10:

> 10. Section 213(a) of the *Code* defines culpable homicide as murder where a person causes the death of a human being while committing or attempting to commit a range of listed offences, whether or not the person means to cause death or whether or not he or she knows that death is likely to ensue if that person means to cause bodily harm for the purpose of facilitating the commission of the offence or flight after committing or attempting to commit the offence. The introductory paragraph of the section, therefore, expressly removes from the Crown the burden of proving beyond a reasonable doubt that the accused had subjective foresight of death. This section stands as an anomaly as regards the other murder provisions, especially in light of the common law presumption against convicting a person of a true crime without proof of intent or recklessness: R. v. Sault Ste. Marie, [1978] 2 S.C.R. 1299, at pp. 1309-10, per Dickson J., as he then was.

[94] In concluding that s. 213(a) was unconstitutional the Chief Justice wrote at paras. 11-12:

> 11 … The essential role of requiring subjective foresight of death in the context of murder is to maintain a proportionality between the stigma and punishment attached to a murder conviction and the moral blameworthiness of the offender. Murder has long been recognized as the "worst" and most heinous of peace time crimes. It is, therefore, essential that to satisfy the principles of fundamental justice, the stigma and punishment attaching to a murder conviction must be reserved for those who either intend to cause death or who intend to cause bodily harm that they know will likely cause death. In this regard, I refer to the following works as support for my position, in addition to those cited in *Vaillancourt*: Cross, "The Mental Element in Crime" (1967), 83 L.Q.R. 215; Ashworth, "The Elasticity of *Mens Rea*," in *Crime, Proof and Punishment* (1981); Williams, *The Mental Element in Crime* (1965); and Williams, "Convictions and Fair Labelling", [1983] 42 C.L.J. 85.
>
> 12 In sum then, I am of the view that a special mental element with respect to death is necessary before a culpable homicide can be treated as murder. That special mental element gives rise to the moral blameworthiness that justifies the stigma and punishment attaching to a murder conviction. For all the foregoing reasons, and for the reasons stated in *Vaillancourt*, I conclude that it is a principle of fundamental justice that a conviction for murder cannot rest on anything less than proof beyond a reasonable doubt of subjective foresight of death. That was my position when *Vaillancourt* was decided, and that is my position today. Therefore, since s. 213 of the *Code* expressly eliminates the requirement for proof of subjective foresight, it infringes ss. 7 and 11(d) of the *Charter*.
> [My emphasis.]

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[95] The Chief Justice then went on to rule that the unconstitutional provisions could not be saved by s. 1 of the *Charter*. In doing so, he stated at para. 13:

> To label and punish a person as a murderer who did not intend or foresee death unnecessarily stigmatizes and punishes those whose moral blameworthiness is not that of a murderer, and thereby unnecessarily impairs the rights guaranteed by ss. 7 and 11(d) of the *Charter*. In my view then, s. 213(a), indeed all of s. 213, cannot be saved by s. 1 of the *Charter*.

[96] Ms. Ejigu submits that the reversal of the burden of proof under ss. 16(2) and (3) of the *Code* and the requirement that an accused prove insanity on a balance of probabilities can result in a finding of guilt notwithstanding a reasonable doubt in the mind of the trier of fact about the accused's guilt contrary to the fundamental principle of justice that a person who is not criminally responsible at the time of an offence should not be convicted. She submits that in such circumstances, and especially in cases in which the accused is charged with murder, the impugned provisions cannot withstand constitutional scrutiny.

[97] The Crown does not dispute that it is a fundamental principle of justice that a person who was not criminally responsible at the time of the offence should not be convicted.

[98] The Crown does, however, take issue with the assertion that the reversal of the burden of proof under ss. 16(2) and (3) of the *Code* and the requirement that the accused establish the defence of NCRMD on a balance of probabilities is a constitutionally impermissible infringement of that fundamental principle of justice.

[99] The Crown submits that the accused's reliance on a s. 7 *Charter* breach of the fundamental principle of justice that a person who was not criminally responsible at the time of the offence should not be convicted is a re-statement of the s. 11(d) arguments that were decided in *Chaulk* that "all come down to the possibility that a mentally ill accused might have been able to raise a reasonable doubt, but not prove insanity on a balance of probabilities".

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[100] As noted in para. 26 above, at para. 39 in *Chaulk* in addressing whether the presumption of sanity embodied in s. 16 of the *Code* violated the presumption of innocence and, if so, in what way, Lamer C.J. stated:

> … Whether the claim of insanity is characterized as a denial of mens rea, an excusing defence or, more generally, as an exemption based on criminal incapacity, the fact remains that sanity is essential for guilt. Section 16(4) allows a factor which is essential for guilt to be presumed, rather than proven by the Crown beyond a reasonable doubt. Moreover, it requires an accused to disprove sanity (or prove insanity) on a balance of probabilities; it therefore violates the presumption of innocence because it permits a conviction in spite of a reasonable doubt in the mind of the trier of fact as to the guilt of the accused.
>
> [My emphasis.]

[101] Those findings were re-emphasized in the Chief Justice's consideration of whether the breach of s. 11(d) was saved by s. 1. In so doing he wrote at para. 53:

> 53. Before characterizing the relevant objective, I feel that it is necessary to focus on what it is about s. 16(4) which violates s. 11(d). The problem with s. 16(4) is two-fold. First, the provision allows sanity (something which is essential to guilt) to be presumed. This violates the basic principle (set out in Oakes) that the state bears the burden of proving guilt beyond a reasonable doubt. Second, the provision requires an accused to prove his or her insanity, on a balance of probabilities, in order to rebut the presumption of sanity. This gives rise to a reversal of the burden of proof such that an accused could be found guilty of a criminal offence despite a reasonable doubt in the mind of the trier of fact about the accused's insanity.
>
> [Emphasis in *Chaulk*.]

[102] The Chief Justice then wrote at para. 54:

> 54. It is therefore necessary to focus on the presumption and on the reversal of the burden of proof and ask: what was Parliament's specific objective in forcing an accused who raises s. 16 to prove his or her insanity on a balance of probabilities? The answer can only be that Parliament wished to avoid placing on the Crown the impossibly onerous burden of disproving insanity and to thereby secure the conviction of the guilty (who are not "sick") by defeating acquittals based on a doubt as regards insanity. Drawing an analogy to my (dissenting) reasons in Schwartz, supra, s. 16(4) is no more "particular or essential" to insanity legislation than s. 106.7(1) is to weapons legislation. Section 16(4) is a purely evidentiary section whose objective is to relieve the prosecution of the tremendous difficulty of proving an accused's sanity in order to secure a conviction.
>
> [My emphasis.]

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[103] As I have previously recorded at paras. 30 to 32 of these reasons, Chief Justice Lamer then went on to rule that the impugned provisions violated the presumption of innocence "as little as possible" and that s. 16(4) of the *Code* was a reasonable limit on the presumption of innocence.

[104] The considerations and conclusions of the Chief Justice in *Chaulk* give force to the Crown's argument that the issues raised by Ms. Ejigu under the rubric of a s. 7 breach of the fundamental principle of justice, that a person who was not criminally responsible at the time of the offence should not be convicted, were at least indirectly considered by the Court in upholding the reverse onus provisions in the predecessor to ss. 16(2) and (3) of the *Code*.

[105] It is difficult to accept that Chief Justice Lamer who had been the author the majority judgments of the Court in *Vaillancourt* and *Martineau* was not cognizant of the potential conflict between those decisions which found that it was a fundamental principle of justice that a conviction for murder cannot rest on anything less than proof beyond a reasonable doubt of subjective foresight of death, and the ruling in *Chaulk* that an insane person could be convicted of the offence of murder due to their inability to establish insanity at the time of the offence on a balance of probabilities.

[106] It is also difficult to accept that in *Swain* decided only one year after *Chaulk,* where the majority decision of the Court was again authored by Lamer C.J., that the Court was not cognizant of the reverse onus and standard of proof provisions in s. 16 that had only been saved by application of s. 1 of the C*harter.*

[107] Although the Court's decision is *Swain* adverted to the fact (in *obiter dicta*) that it is a fundamental principle of justice under s. 7 of the *Charter* that a person who was not criminally responsible at the time of the offence should not be convicted, it did not refer to its earlier decision in *Chaulk* and its potential inconsistency with that s. 7 fundamental principle of justice enunciated in *Swain.*

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[108] The likely reason why that potential inconsistency was not addressed in *Swain* was because, as stated by Lamer C.J., that principle was not triggered in that case. The s. 7 principle of fundamental justice engaged in *Swain* was that an accused must have control of his or her defence.

[109] In the Court's later decision in *Warsing,* that applied *Swain* in stating that it is a fundamental principle of justice under s. 7 of the *Charter* that a person who was not criminally responsible at the time of the offence should not be convicted, the reverse onus or burden of proof issues that were determined in *Chaulk* also did not arise.

[110] It is, in my opinion, also important to note that in *Warsing* as well as in *I.E.M* what was specifically at issue was whether the defence of NCRMD could be raised for the first time after a finding of guilt. Similarly at issue in *Swain* was whether the Crown could adduce evidence of insanity before a finding of guilt and therefore deprive the accused of the right to a possible acquittal because the Crown had not proven the charge of murder beyond a reasonable doubt before relying on the NCRMD defence.

[111] In *Chaulk*, however, as in this case, the accused raised the defence of insanity under s. 16 before a finding of guilt or innocence and the Crown was entitled to adduce evidence with respect to sanity in rebuttal.

[112] Notwithstanding that difference, it is in my opinion still significant that *Chaulk* was decided solely with respect to the s. 11(d) breach of the accused's right to the presumption of innocence that was saved by s. 1.

[113] There was, as Ms. Ejigu asserts, no direct consideration of the fundamental principle of justice embodied in s. 7 of the *Charter* recognized by the Supreme Court of Canada in *Swain* in 1991 and affirmed in *Warsing* in 1998 that a person who was not criminally responsible at the time of the offence should not be convicted.

[114] While it can be argued, as the Crown asserts, that the Court indirectly considered that latter principle of fundamental justice in its application of the

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provisions of s. 1 of the *Charter* in *Chaulk* to save the s. 11(d) breach of the presumption of innocence and that the result would have been the same if the identified s. 7 breach of a principle of fundamental justice had been directly addressed, the issue is not free from doubt.

[115] I say that because while, as I have decided that in this case the Court's decision in *Whaling* applies to preclude consideration of the presumption of innocence as a s. 7 *Charter* breach separate and apart from s. 11(d), different considerations apply with respect to application of the "general preference for dealing with the specific [*Charter*] guarantee" expressed in *Whaling* when the specific infringement does not fall squarely within a protected *Charter* right.

[116] In this case the s. 7 principle of fundamental justice that a person who was not criminally responsible at the time of the offence should not be convicted was specifically recognized post-*Chaulk* and in my opinion engages not only Ms. Ejigu's s. 11(d) right to be presumed innocent.

[117] I agree with the submission of counsel for Ms. Ejigu that the potential for a finding of guilt of a mentally ill person despite the existence of a reasonable doubt about an essential element of the offence of murder engages broader s. 7 *Charter* rights than those protected by s. 11(d).

[118] In saying that I refer to the observations of Chief Justice Lamer in *Chaulk* at para. 22 concerning the various ways in which the provisions of s. 16 of the *Code* may operate as a defence predicated upon an incapacity for criminal intent.

[119] Those various ways include the denial of the existence of the requisite *mens rea* as an essential element of the offence charged, an issue of particular import with respect to a charge of murder.

[120] I accordingly find that the reverse onus and burden of proof provisions of ss. 16(2) and (3) of the *Code* are inconsistent not only with s. 11(d) of the *Charter* but also with the s. 7 fundamental principle of justice that a person who was not criminally responsible at the time of the offence should not be convicted.

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[121] Whether the Court's determination in *Chaulk* that the non-compliance of the predecessor provisions of s. 16(4) of the *Code* with s. 11(d) is justified by s. 1 of the *Charter* also governs and remains binding upon me concerning the non-compliance of ss. 16(2) and (3) with the s. 7 fundamental principle of justice that a person who was not criminally responsible at the time of the offence should not be convicted, must be assessed having regard to the principles enunciated in *Bedford* and *Carter.*

*4) The right to silence and protection against self-incrimination*

[122] Ms. Ejigu asserts that ss. 16(2) and (3) of the *Code* also violate the well-recognized s. 7 *Charter* fundamental principles of justice of both the right to silence and the protection against self-incrimination.

[123] In doing so, she acknowledges that there is nothing in the impugned provisions that expressly violate the right to silence or *Charter* protection against self-incrimination.

[124] She does, however, submit that the reverse onus and standard of proof provisions of ss. 16(2) and (3) of the *Code* create a practical compulsion in contravention of those fundamental principles because an accused person who fails to testify or otherwise produce statements about the offence will do so at their peril.

[125] Ms. Ejigu submits that although the defence of NCRMD is a legal one, psychiatric opinion evidence will invariably be required in support of it. If the evidence upon which the opinion is based is not before the court other than by way of hearsay in the psychiatric opinion, the accused may be required to testify and "thereby give up their right to silence and privilege against self-incrimination".

[126] In support of that practical compulsion argument Ms. Ejigu relies upon the decision of the Supreme Court of Canada in *R. v. Molodowic*, [2000] 1 S.C.R. 420 [*Molodowic*].

[127] In *Molodowic* the Court upheld the jury's verdict of second degree murder which was challenged by the appellant who suffered from a serious mental disorder,

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had raised the defence of NCRMD at trial and had adduced the evidence of two psychiatrists in support of that defence.

[128] In upholding the verdict, Arbour J. stated for the Court at para. 7:

> 7 In *R. v. Ratti*, [1991] 1 S.C.R. 68, at p. 80, this Court held that an act or omission is "wrong", within the meaning of s. 16, where that act or omission "in the particular circumstances would have been morally condemned by reasonable members of society" (emphasis in original). In deciding whether or not an accused appreciated that his actions were morally wrong, a jury is not "bound by the expert psychiatric testimony and . . . its probative value [is] to be assessed in the same manner as any other testimony" (*Ratti*, *supra*, at p. 81). Further, in weighing expert evidence a jury is entitled to examine the factual foundations of the opinion and is entitled to accord less weight to that opinion where it is not based on facts proved at trial and/or where it is based upon factual assumptions with which they disagree. See *R. v. Lavallee*, [1990] 1 S.C.R. 852, at pp. 896-97, and *Ratti*, *supra*, at p. 81.

[129] Ms. Ejigu also relies upon the decision of the Ontario Court of Appeal in *R. v. Grandboios* (2003), 63 O.R. (3d) 161 (C.A.), in which the Court also dismissed an appeal from conviction where a jury had rejected the NCRMD defence.

[130] At para. 29 of that decision MacPherson J.A. wrote for the Court:

> [29] With respect to the psychiatric evidence, I observe that the appellant did not testify. Accordingly, the only evidence about "the voices" telling him that his wife was planning to kill him came from the psychiatrists respecting what the appellant had told them.

[131] Counsel for Ms. Ejigu submits that those decisions support her assertion that reversing the burden and requiring the accused to meet the burden of proof on a balance of probabilities requires an accused who is advancing an NCRMD defence to give up fundamental constitutionally protected rights.

[132] In reply to those submissions the Crown submits:

> The decision by any accused to testify is a waiver of the right to silence. In many circumstances the strength of the Crown's case will result in a conviction absent defence evidence to raise a doubt. The fact that an accused is "compelled" to testify in such cases does not violate the right to silence or a violation of that right would occur every time the Crown has a strong case. An accused testifies when they see it in their interests to do so; it is always their choice. The fact that they may well be convicted if they don't does not create a *Charter* violation. Similarly under the NCR provisions, there

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> is no compulsion to speak to anyone acting for the state or create evidence against themselves. Only the accused can place their mental health in issue.

[133] I agree that the failure of the accused to testify or co-operate with respect to any court ordered assessment of his or her mental capacity at the time of the offence may make the defence of NCRMD more difficult to establish.

[134] That would, however, still be the case if the burden of establishing the defence was not on the accused.

[135] I accordingly agree with the Crown‘s submission that a practical compulsion to co-operate in an assessment process or testify at trial to establish the defence of NCRMD does create a constitutional violation of an accused’s s. 7 *Charter* rights to silence or protection from self-incrimination.

### *E. Do ss. 16(2) and (3) of the Code violate Ms. Ejigu’s s. 15(1) Charter rights?*

[136] Section 15(1) of the *Charter* provides:

> 15. (1) Every individual is equal before and under the law and has the right to the equal protection and equal benefit of the law without discrimination and, in particular, without discrimination based on race, national or ethnic origin, colour, religion, sex, age or mental or physical disability.

[137] In addressing Ms. Ejigu’s submissions concerning the alleged violation of her s. 15(1) *Charter* rights arising from the provisions of ss. 16(2) and (3) of the *Code,* I will first summarize those submissions followed by a summary of the Crown’s submissions in response.

[138] I will then discuss the approach to be taken in determining the constitutional issues engaged by Ms. Ejigu’s s. 15(1) submissions followed by a detailed discussion of the disadvantages and discrimination which she claims are perpetrated by ss. 16(2) and (3) of the *Code* in violation of her s. 15(1) *Charter* rights.

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*1) Summary of the accused's s. 15(1) submissions*

[139] Ms. Ejigu submits that the provisions of ss. 16(2) and (3) of the *Code* infringe her s. 15(1) *Charter* rights because they impose a disproportionate and discriminatory burden on her as a woman of an ethnic, national and cultural minority suffering from a mental disorder.

[140] She says that as a member of each of these three enumerated classes of persons who are entitled to the equal protection and benefit of the law, imposition of the requirement for her to rebut the presumption of sanity on a balance of probabilities causes her serious disadvantages by reason of an increased risk of exposure to imprisonment and what she refers to as a "wrongful conviction".

[141] I must at this time note that when I refer to the possibility of a "wrongful conviction" or an accused being "wrongfully convicted" (whether in quotation marks or not) I am using that terminology only to reflect the position advanced by Ms. Ejigu that the conviction of an accused person of a criminal offence without proof by the Crown of all of the essential elements of that offence beyond a reasonable doubt is a "wrongful conviction". My use of the terminology does not mean that I accept any other meaning of it such as that a person may be wrongfully convicted by tainted evidence.

[142] Ms. Ejigu submits that the disadvantages suffered by her as a member of each of those identified enumerated groups of which she is a member operate both individually and cumulatively to deprive her of her s. 15(1) *Charter* right to the equal protection and benefit of the law.

*2) Summary of the Crown's s. 15(1) submissions*

[143] The Crown submits that Ms. Ejigu cannot meet the legal tests necessary to establish any distinction based on enumerated or analogous ground between her and other accused persons who may seek to establish the defence of NCRMD because s. 16 of the *Code* "applies to all persons equally without regard to the enumerated categories".

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[144] The Crown says that the disadvantages Ms. Ejigu alleges arise from membership in the enumerated groups upon which she relies are in reality only unfortunate personal disadvantages particular to her that do not arise from the operation of the impugned law. As such, they are not properly the subject of scrutiny under s. 15(1) of the *Charter*.

[145] The Crown also submits that even if that were not the end of the constitutional inquiry under s. 15(1) of the *Charter*, the inquiry must, in any event, fail because "s. 16 of the *Code* in no way creates a disadvantage by perpetuating prejudice or stereotyping".

[146] In making those submissions, the Crown also submits that Ms. Ejigu has not provided any evidence to establish that any of the disadvantages from which she alleges she suffers have prevented her from meeting the evidentiary burden imposed on all accused who seek to rely on the defence of NCRMD.

[147] In addition, the Crown asserts that Ms. Ejigu's submission that the provisions of ss. 16(2) and (3) of the *Code* create an increased risk of wrongful conviction emphasizes that "what is really being argued is a s. 11(d) violation of exactly the sort found in *Chaulk*… found to be justifiable under s. 1 in *Chaulk*".

> *3) The approach to be taken in determining whether a law violates s. 15(1) of the Charter*

[148] The approach to be taken in determining whether a law violates the equality rights protected by s. 15(1) of the *Charter* has evolved over the years culminating in two recent decisions of the Supreme Court of Canada.

[149] In *Kahkewistahaw First Nation v. Taypotat*, 2015 SCC 30 [*Taypotat*], the Court unanimously re-affirmed the approach adopted by the majority (on the s. 15(1) issue but not in the s. 1 result) in *Quebec (Attorney General) v. A*, 2013 SCC 5 [*Quebec v. A*.].

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[150] At paras. 16 to 21 in *Taypotat*, Abella J. wrote:

> [16] The approach to s. 15 was most recently set out in *Quebec (Attorney General) v. A*, [2013] 1 S.C.R. 61, at paras. 319-47. It clarifies that s. 15(1) of the *Charter* requires a "flexible and contextual inquiry into whether a distinction has the effect of perpetuating arbitrary disadvantage on the claimant *because of his or her membership in an enumerated or analogous group*": para. 331 (emphasis added).
>
> [17] This Court has repeatedly confirmed that s. 15 protects substantive equality: *Quebec v. A*, at para. 325; *Withler v. Canada (Attorney General)*, [2011] 1 S.C.R. 396, at para. 2; *R. v. Kapp*, [2008] 2 S.C.R. 483, at para. 16; *Andrews v. Law Society of British Columbia*, [1989] 1 S.C.R. 143. It is an approach which recognizes that persistent systemic disadvantages have operated to limit the opportunities available to members of certain groups in society and seeks to prevent conduct that perpetuates those disadvantages. As McIntyre J. observed in *Andrews*, such an approach rests on the idea that not every difference in treatment will necessarily result in inequality and that identical treatment may frequently produce serious inequality: p. 164.
>
> [18] The focus of s. 15 is therefore on laws that draw *discriminatory* distinctions — that is, distinctions that have the effect of perpetuating arbitrary disadvantage based on an individual's membership in an enumerated or analogous group: *Andrews*, at pp. 174-75; *Quebec v. A*, at para. 331. The s. 15(1) analysis is accordingly concerned with the social and economic context in which a claim of inequality arises, and with the effects of the challenged law or action on the claimant group: *Quebec v. A*, at para. 331.
>
> [19] The first part of the s. 15 analysis therefore asks whether, on its face or in its impact, a law creates a distinction on the basis of an enumerated or analogous ground. Limiting claims to enumerated or analogous grounds, which "stand as constant markers of suspect decision making or potential discrimination", screens out those claims "having nothing to do with substantive equality and helps keep the focus on equality for groups that are disadvantaged in the larger social and economic context": *Corbiere v. Canada (Minister of Indian and Northern Affairs)*, [1999] 2 S.C.R. 203, at para. 8; Lynn Smith and William Black, "The Equality Rights" (2013), 62 *S.C.L.R.* (2d) 301, at p. 336. Claimants may frame their claim in terms of one protected ground or several, depending on the conduct at issue and how it interacts with the disadvantage imposed on members of the claimant's group: *Law v. Canada (Minister of Employment and Immigration)*, [1999] 1 S.C.R. 497, at para. 37.
>
> [20] The second part of the analysis focuses on arbitrary — or discriminatory — disadvantage, that is, whether the impugned law fails to respond to the actual capacities and needs of the members of the group and instead imposes burdens or denies a benefit in a manner that has the effect of reinforcing, perpetuating or exacerbating their disadvantage:
>
> > The root of s. 15 is our awareness that certain groups have been historically discriminated against, and that the perpetuation of such discrimination should be curtailed. If the state conduct widens the gap between the historically disadvantaged group and the rest of society

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> rather than narrowing it, then it is discriminatory. [*Quebec v. A*, at para. 332]
>
> [21] To establish a *prima facie* violation of s. 15(1), the claimant must therefore demonstrate that the law at issue has a disproportionate effect on the claimant based on his or her membership in an enumerated or analogous group. At the second stage of the analysis, the specific evidence required will vary depending on the context of the claim, but "evidence that goes to establishing a claimant's historical position of disadvantage" will be relevant: *Withler*, at para. 38; *Quebec v. A*, at para. 327.

[151] Although earlier decisions of the Court may still inform the analysis of whether an impugned law violates an individual's substantive equality rights, care must be taken not to rely on principles taken from that earlier jurisprudence that are at odds with those enunciated in *Quebec v. A.* and *Taypotat.*

[152] More specifically, earlier decisions which required proof of prejudice and stereotyping have been surpassed by more recent authority.

[153] The question that must now be answered is whether the state conduct widens the gap between the historically disadvantaged group and the rest of society rather than narrowing it. If it does, it is discriminatory. See: *Quebec v. A*. at para. 332.

[154] In order to establish that ss. 16(2) and (3) of the *Code* violate her s. 15(1) rights to equal protection and benefit of the law, Ms. Ejigu must therefore establish on a balance of probabilities that ss. 16(2) and (3) of the *Code*:

1) either facially or in substantive impact create a distinction as a member of one or more groups who are discriminated against on enumerated or analogous grounds; and

2) fail to respond to the actual capacities and needs of the members of the group and instead impose burdens in a manner that has the effect of reinforcing, perpetuating or exacerbating their disadvantage.

[155] With those principles in mind I will next discuss Ms. Ejigu's specific claims with respect to the alleged discriminatory effects of ss. 16(2) and (3) of the *Code* which she says violate her s. 15(1) *Charter* rights.

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*4) Allegations of disadvantage and discrimination*

[156] Ms. Ejigu asserts that she is a member of at least three identifiable groups against which ss. 16(2) and (3) of the *Code* discriminate on grounds enumerated in s. 15(1) of the *Charter.*

[157] She asserts that the impugned NCRMD provisions impose upon her disproportionate burdens as a woman, as a member of both an ethnic and national minority and as a person with a mental disability that have the effect of reinforcing, perpetuating and exacerbating historical disadvantages suffered by those three groups.

[158] She also submits that the cumulative effect of her membership in those identifiable groups exacerbates the discriminatory effect of the provisions of ss. 16(2) and (3) of the *Code*.

*(a) Allegations of discrimination as a woman*

[159] Ms. Ejigu relies on the fact that the Supreme Court of Canada has recognized that women have been historically disadvantaged in Canadian Society. See: *Weatherall v. Canada (Attorney General*), [1993] 2 S.C.R. 872.

[160] She relies on statistics taken from *The National Trajectory Project of Individuals Found Not Criminally Responsible on Account of Mental Disorder in Canada. Part 2: The People Behind the Label*, Can. J. Psychiatry 2015 [the *Trajectory Project*] that state that 15.6% of accused persons who have been found to be not criminally responsible because of a mental disorder are women.

*(b) Allegations of discrimination as a member of an ethic and national minority*

[161] Ms. Ejigu was born and raised in Ethiopia and is also a member of the Amhara minority in that country and speaks the Amharic language. She immigrated to Canada as an adult and her ability to speak English is at best limited.

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[162] She required an Amharic interpreter for all of the court processes that have resulted from the killing of Ms. Hagos and virtually all of the psychiatric evidence adduced at trial was obtained with the assistance of an Amharic interpreter.

[163] Statistics from the *Trajectory Project* state that 34% of accused persons who have been found to be not criminally responsible because of a mental disorder were born outside of Canada. Also, 11.6% of accused persons who have been found to be not criminally responsible because of a mental disorder do not speak French or English.

[164] Counsel for Ms. Ejigu says that Ms. Ejigu is disadvantaged in leading evidence related to her defence of NCRMD in this case in many ways as a member of a cultural and linguistic authority, including but not limited to the following:

a. Because of Ms. Ejigu's national origin, there are very few people who have known her long enough to testify concerning her baseline.

b. As a result of language barriers caused by Ms. Ejigu's national and ethnic origin, she has often been seen by doctors without any or reliable interpretation as such, there will have been missed opportunities to observe and record her illness in her medical records.

c. Similarly, no one diagnosing her in Canada has ever been able to communicate with her directly and this decreases the likelihood that abnormal thought will be identified.

d. Still further, at the most critical time for gathering evidence of mental disorder, the first responders could not communicate with the Applicant and the first psychiatric assessment (with an interpreter) occurred with the interpreter on the telephone, over 24 hours after the killing and after the Applicant had received medication.

e. Because of Ms. Ejigu's culture and gender (ethnic origin and sex), when Ms. Ejigu was in Fort St. John, she was mostly a homemaker, had little social contact and was beholden to her husband's views regarding whether she needed medical help (she testified that he did not take her complaints of illness seriously), this too limits the evidence available to Ms. Ejigu.

f. Cultural differences (incidents of her national and ethnic origin) create a challenge in assessing which behaviors and beliefs are abnormal for Ms. Ejigu. In the recent decision of *Ewert v. Canada,* 2015 FC 1093, Phelan J. held that the plaintiff’s section 7 rights had been violated because his liberty as an imnate had been infringed due to the results of psychological assessment tools that were unreliable due to cultural bias.

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g. Cultural differences also create a barrier to understanding the stressors Ms. Ejigu experienced while being separated from her church and family.

h. Due to national origin, the Applicant's pre-2007 medical history and family history are not available from accessible independent sources or records.

[165] In support of her assertions with respect to the disadvantages suffered as a consequence of language and cultural issues, Ms. Ejigu relies upon the evidence of Drs. Jeanette Smith and Mark Riley who were called as defence psychiatric experts.

[166] Dr. Smith testified on April 23, 2015 that:

> The other issue in this case is her -- what I suspect is thought disorder. And this, as I described earlier, is in the form of her speech and the connectedness between words and sentences that is quite unusual. Now, if I was — it would be much easier for me to observe that if she -- if we both both spoke the same language, but trying to elicit that by an interpreter is more challenging.
>
> …
>
> ... there are always challenges when interviewing somebody through an interpreter. It's particularly difficult when you're trying to elicit psychiatric symptoms because many of them are quite abstract and there aren't necessarily terms -- equivalent terms in the language that's being interpreted.
>
> It's also difficult because if someone is describing delusional beliefs, there may be a natural sense in -- on the interpreter's behalf to make sense of what's being said and to interpret it in a sensible way and when there actually isn't any sense to it.
>
> It's -- there are obvious cultural issues here as well and as I said earlier, it's important in the definition of delusions that the belief is inappropriate to an individual's sociocultural background. And personally, I'm not familiar with Ms. Ejigu's cultural background but I appreciate it's different from mine.
>
> Ideally, she should have been assessed by an Amharic speaking forensic psychiatrist but clearly that's not possible.
>
> [Underlining by Ms. Ejigu's counsel.]

[167] Similarly, Dr. Riley testified on June 29, 2015 that:

> Q Dr. Riley, in paragraph 21 of your report you indicate -- you raise the issue of the importance of language and cultural differences. Can you just advise the court of your view of how this has impacted your ability to carry out an assessment?
>
> A Well, particularly the -- the language aspect has had a huge impact on -- on my ability to assess, and I would suggest any other mental

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> health professional that has been involved in direct assessment of Ms. Ejigu. Her use of English is quite basic, she can understand a little more than she can express. The difficulty with this is -- is that one has to rely on an interpreter and that inevitably impairs the quality of the interaction when doing an assessment

[168] Dr. Semrau, called by the Crown as a psychiatric expert, in rebuttal did not disagree with concerns related to the difficulty of assessing a person from a different culture through an interpreter.

[169] On September 14, 2015 Dr. Semrau testified:

> The problem is considerably compounded when you have to work through a translator, and even further compounded when you are dealing with someone from a different culture, because there are cultures in which it is commonplace to at least speak about experiences which may be just internal dialogue, as if it was hearing an external voice.

[170] The Crown submits that the issues raised by Ms. Ejigu with respect to her national origin, the language barriers which she faces, her ethnic and cultural background, status as an isolated housewife and the unavailability of independent evidence or records of her pre-2007 medical and family history are all matters of unfortunate personal circumstances, not disadvantages having a disproportionate effect upon her as consequence of her membership in an enumerated group.

[171] The Crown further submits that there is no evidence that any of the difficulties faced by Ms. Ejigu as a woman or as an immigrant Amharic speaking member of a cultural minority have prevented her from meeting the burden imposed upon her by ss. 16(2) and (3) of the *Code* to establish the defence of NCRMD.

[172] More specifically, the Crown submitted at para. 57 of its written argument:

> 57. There is no evidence before the Court that the Applicant's membership in any of the enumerated groups has caused her any disadvantage in meeting the requirements of s.16. The lack of mental health care in Ethiopia is raised but there is no evidence that it has prevented the Applicant in any way from meeting the s.16 burden; no connection is demonstrated. The fact that the Applicant is African is raised, but there is no evidence that it in any way prevented her from meeting the s.16 burden. The fact that the Applicant is a woman is raised, but there is no evidence that women historically have difficulty in meeting the s.16 burden based on being female. The fact that the Applicant's first language is Amharic is raised, but

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> there is no evidence before the Court that persons speaking languages requiring an interpreter have difficulty meeting the s.16 burden. All the Applicant does is list the enumerated groups she belongs to and ask the Court to assume a discriminatory disadvantage caused by the operation of the law. Some accused persons come from disadvantaged backgrounds; it is not discrimination that some people may find it harder to meet the burden than others due to their personal circumstances

[173] The Crown also submits that the statistical evidence relied upon by Ms. Ejigu does not support the proposition that women, immigrants to Canada or those who do not speak English or French and require the use of interpreters in the criminal process are disadvantaged because of their membership in any of those groups from meeting the burden of establishing the defence of NCRMD.

[174] In its written argument in response to the statistical assertions advanced by Ms. Ejigu the Crown stated at paras. 60 to 63:

> 60. The Applicant notes 15,6% of persons found to be NCR in Canada are women.[15] This is approximately the same percentage of violent crimes in Canada which are committed by women. Findings of NCRMD are far more common in offences against the person: 63%.[16] This indicates being female is not a statistical disadvantage in meeting the s. 16 *burden. On the contrary,* the statistical evidence indicates that women are neither historically nor currently at any disadvantage regarding meeting the burden under s.16. In any event, s.16 does not operate to create discrimination against anyone.
>
> 61. She further notes that 34% of the persons found to be NCR in Canada were born outside of Canada. Just over 20% of Canada's population is foreign born.[17] Since only about 20% of Canadians were born outside of Canada, it would appear that being foreign born is not a disadvantage in meeting the s.16 burden in fact the statistical reverse appears to be true. This is particularly compelling as immigrants to Canada are statistically less likely to commit crimes than those born here.[18]
>
> 62. She also notes that 11.6% of person found to be NCR in Canada do not speak English or French. Since only 6.2% of Canadians speak neither English nor French, it would appear that the inability to speak either English or French is not a barrier to meeting the burden under s. 16 and again that the statistical reverse is true.
>
> 63. The only logical inference to be drawn from the above is that s. 16 works without prejudicing any of the enumerated groups in their ability to raise a s.16 defence.

[175] Those arguments were supported by reference to publications detailed in footnotes 15 to 19 of that written submission stating:

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[15] See, **Women as a percentage of adults charged with Criminal Code offences, 1979 to 2009**

*http://www.statcan.gc.ca/pub/89-503-x/2010001/article/11416/c-g/c-g007-eng.htm*

[16] See, **Verdicts of not criminally responsible on account of mental disorder in adult criminal courts, 2005/2006-2011/2012**

*http://www.statcan.gc.ca/pub/85-002-x/2014001/article/14085-eng.htm#a1*

[17] See, **Immigration: One out of 5 people in Canada's population is foreign-born:** According to the first data from the 2011 NHS, Canada had a total of about 6,775,800 foreign-born individuals who arrived as immigrants. They represented 20.6% of the total population, compared with 19.8% in the 2006 Census. Many of Canada's foreign-born have lived in the country for many years, while others were relative newcomers. Around 1,162,900 foreign-born people immigrated in Canada between 2006 and 2011. These recent immigrants made up 17.2% of the total foreign-born population and 3.5% of the total population in Canada. Together with immigrants who came during the first five years of the millennium, nearly 2,155,000 immigrants made Canada home during the last ten years.

*https://www 12.statcan.gc.ca/nhs-enm/2011/as-sa/99-010-x/99-010-x2011001-eng.cfm*

[18] See, Immigrants and Criminality: A Cross-National Review, M G Yeager, Criminal Justice Abstracts Volume:29 lssue:1 Dated:(March 1997) Pages:143-171:

*https://www.ncjrs.gov/App/Publications/abstract.aspx?ID=168699*

[19] While 20.6% of Canadians (6.8 million people) reported a mother tongue other than English or French, only 6.2% of Canadians spoke a language other than English or French as their sole home language: *http://www12.statcan.gc.ca/census-recensement/2011/as-sa/98-314-X/98-314-x2011001-eng.cfm*

[176] In reply, Ms. Ejigu took issue with the Crown's statistical submissions stating that the statistics relied upon do not show that Ms. Ejigu and others like her are not disadvantaged because they are not under-represented in the NCRMD population since "they say nothing about the relative lack of success of protected groups versus the general population in proving a genuine defence of NCRMD".

[177] My consideration of the submissions of counsel and the evidence relied upon by the parties persuades me that ss. 16(2) and (3) of the *Code* do not have a disproportionate effect upon Ms. Ejigu as a consequence of her gender or as a consequence of her national origin. I agree with the Crown that the evidence does

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not meet the burden upon Ms. Ejigu of proving discrimination on either of those enumerated grounds.

[178] Ms. Ejigu may have been disadvantaged in life as a woman from Africa who has immigrated to Canada and has been socially isolated but I do not accept that the evidence establishes that those personal circumstances have operated to prevent her from meeting the burden imposed upon her by the impugned provisions.

[179] I am, however, far more troubled by the evidence adduced concerning the effect of the language and cultural difficulties arising from Ms. Ejigu's ethnic background as a member of a cultural minority on her ability to meet the evidentiary burden imposed upon her under ss. 16(2) and (3) of the *Code* to establish the defence of NCRMD.

[180] The evidence of the three psychiatrists to which I have referred gives rise to serious concerns about the ability of a non-Amharic speaking psychiatrist to fully comprehend Ms. Ejigu's mental state at the time of the killing of Ms. Hagos because of the linguistic and cultural problems identified by each of them.

[181] The question is, however, not whether those identified obstacles to meeting the onerous burden of proof to establish NCRMD are more difficult for Ms. Ejigu than for others charged with a serious criminal offence.

[182] The question is: does that onerous burden of proof have a disproportionate effect upon her as a member of an ethnic minority who must interact with first responders, medical professionals and counsel as well as the Court through an interpreter?

[183] The issues identified by Ms. Ejigu are not uncommon in a diverse multicultural society. Courts in Canada are regularly faced with the challenges of assessing evidence that can only be received with the benefit of an interpreter.

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[184] Cultural differences can also often be difficult to fully comprehend and may not be appreciated by either counsel or the Court who may also not be in a position to identify the significance of any such cultural differences in assessing evidence.

[185] The fact that linguistic and cultural differences may negatively impact a litigant's ability to present his or her case in civil matters or establish the foundation for a defence in criminal matters does not in and of itself give rise to the need for constitutional scrutiny under s. 15(1) of the *Charter.*

[186] It is only when an enactment has a disproportionate effect upon a claimant (or in the context of the criminal law − an accused person) based on his or her membership in an enumerated or analogous group that a *prima facie* case of a violation of s. 15(1) of the *Charter* is made out.

[187] It is, in my view obvious, that the difficulty faced by any litigant in overcoming pervasive linguistic and cultural difficulties will increase with the burden of proof they must meet to succeed on the matter in issue.

[188] That increasing difficulty does not, however, arise from disproportionate effects upon Ms. Ejigu as a member of a distinct linguistic and ethnic group.

[189] Ms. Ejigu or others like her who share the same or similar characteristics may, as a consequence of their linguistic limitations and cultural differences, face disadvantages in meeting whatever burden of proof the law may require.

[190] The fact that such disadvantage may increase with an elevated burden, as in the case with the impugned NCRMD provisions, does not arise because the law targets them directly or indirectly as members of a *Charter* protected enumerated or analogous group by increasing the burden on them as members of such a group. It arises because of the increased burden on all accused who seek to establish the defence of NCRMD.

[191] Although decided in the context of alleged breaches of the accused's s. 11(d) and s. 7 *Charter* rights relating to the admissibility of statements obtained in a

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foreign country, the decision of the Supreme Court of Canada in *R. v. Harrer*, [1995] 3 S.C.R. 562 [*Harrer*] informs the determination of whether the increased burden of proof in s. 16 of the *Code* constitutes a violation of Ms. Ejigu's s. 15(1) *Charte*r rights as a member of an ethnic minority.

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[192] In addressing issues of trial fairness La Forest J. for the majority in *Harrer* stated at para. 14:

> 14. … this Court has also stated that "s. 7 of the *Charter* entitles the appellant to a fair hearing; it does not entitle him to the most favourable procedures that could possibly be imagined"; see *Lyons*, *supra*, at p. 362. It follows that, in the present context, evidence may be obtained in circumstances that would not meet the rigorous standards of the *Charter* and yet, if admitted in evidence, would not result in the trial being unfair.

[193] Similarly, McLachlin J. (as she then was) stated at para. 45:

> 45. At base, a fair trial is a trial that appears fair, both from the perspective of the accused and the perspective of the community. A fair trial must not be confused with the most advantageous trial possible from the accused's point of view: *R. v. Lyons*, [1987] 2 S.C.R. 309, at p. 362, *per* La Forest J. Nor must it be conflated with the perfect trial; in the real world, perfection is seldom attained. A fair trial is one which satisfies the public interest in getting at the truth, while preserving basic procedural fairness to the accused.

[194] While Ms. Ejigu's linguistic difficulties and cultural idiosyncrasies may make the burden of proof under s. 16 of the *Code* more difficult for her than for another accused, I am satisfied that such increased difficulty does not elevate those personal circumstances to a violation of s. 15(1) *Charter* rights.

[195] To rule otherwise would be to call into question the fairness of virtually every criminal trial in Canada where the accused is faced with linguistic limitations or a cultural idiosyncrasy.

[196] Ms. Ejigu's submissions concerning the alleged violation of her s. 15(1) *Charter* rights arising from her linguistic and cultural disadvantages in meeting the burden of proof under s. 16 of the *Code*, also fail because the evidence relied upon by her to support those arguments does not sufficiently establish such a violation.

[197] Ms. Ejigu tendered the affidavit evidence of Lienza Poelzer, an assistant at her counsel's law firm, who deposed that searches of databases in British Columbia and Ontario for certified Amharic translators did not reveal "a responsive result".

[198] Ms. Ejigu also tendered the affidavit evidence of Dr. Teshome Shibre Kelkie, an Ethiopian born psychiatrist and researcher who has recently practised psychiatry in both Ethiopia and Canada and who now works as a consultant psychiatrist in New Brunswick.

[199] Dr. Kelkie deposed that he speaks English and Oromiffa as well as Amharic. He did not assess Ms. Ejigu and did not offer any diagnosis or opinion concerning her mental health.

[200] Dr. Kelkie deposed as to "cultural, linguistic and other barriers to assessing patients like Ms. Ejigu in the context at hand" and also deposed: "to the best of my knowledge there is no Amharic-speaking forensic psychiatrist in Canada", and that he had never provided a "forensic opinion concerning criminal responsibility or fitness to stand trial in Canada".

[201] In response to those affidavits the Crown filed the affidavit evidence of Kathleen Workman, a paralegal with the Criminal Justice Branch of British Columbia.

[202] Ms. Workman deposed that searches which she conducted in respect of the existence of court certified Amharic interpreters and Amharic speaking psychiatrists obtained different results than the searches undertaken by Ms. Poelzer.

[203] Ms. Workman deposed that her searches revealed that:

1) There is one court certified Amharic interpreter in British Columbia, Mr. (John) Kifle Yohannes Kahsay;

2) A listing of Amharic translators/interpreters on the Immigration Interpreters Association website for the Toronto, Ontario disclosed the existence of 12 interpreters;

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3) She sent e-mails to those 12 listed interpreters to determine if they were able to provide court interpretation and as of March 1, 2016 had received 2 positive responses;

4) Her on-line searches for Amharic speaking psychiatrists and psychologists disclosed the existence of:

    a) Dr. Tzeggai Berhe of Grande Prairie, Alberta who speaks Amharic;

    b) Dr. Gebrehiwot (Gaby) Abraham in Toronto, Ontario who graduated from Addis Ababa University who is fluent in Amharic and is also an Assistant Professor in Psychiatry at the University of Toronto;

    c) Drs. Helen Masresha Bellette of Columbia Maryland and Dr. Veronika Solt of Summit, New Jersey.

[204] In response, Ms. Ejigu filed the further affidavit of Ms. Poelzer who deposed on information and belief that she was advised that "Dr. Berhe is not a forensic psychiatrist and is not in a position to assist with an NCRMD assessment"; Dr. Abraham is also not a forensic psychiatrist and is not in a position to assist with an NCRMD assessment"; Dr. Solt is "not a forensic psychiatrist and does not do courtroom work; and Dr. Bellette is not a "forensically trained psychiatrist" and is "not in a position to do a forensic assessment or a report for the Court in relation to criminal responsibility and mental illness".

[205] The totality of that evidence convinces me that:

1) The parties and the Court have been fortunate to have the dedicated services of Mr. Kahsay as an Amharic interpreter not only for virtually all court processes but also as an interpreter for Dr. Semrau in his interview of Ms. Ejigu. The fact that one interpreter has made himself available throughout dispels concerns that can at times arise when different interpreters are involved in trial proceedings because of differentiation in skill levels. I am satisfied that to the extent Ms. Ejigu suffers from an inability to speak English

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fluently that problem has been ameliorated to the greatest extent possible in this case.

2) Psychiatrists who can speak Amharic and who could assist in helping to understand and resolve not only linguistic but also the ethnic or cultural issues that have been identified by the psychiatrists who testified at trial, would be available to assist with those issues even if they are unable to provide expert forensic psychiatric evidence on the NCRMD issue.

[206] In short, I find that while the burden upon Ms. Ejigu may be difficult to meet, neither s. 15(1) of the *Charter*, nor the fundamental principles of trial fairness support the granting of a constitutional remedy because of her linguistic difficulties or cultural idiosyncrasies.

*(c) Allegations of discrimination as a mentally ill person*

[207] Section 15(1) of the *Charter* provides constitutionally protected rights to the equal protection and benefit of the law without discrimination on the enumerated ground of mental disability.

[208] The full extent of Ms. Ejigu's mental illness – especially at the time of the killing of Ms. Hagos – has not yet been determined.

[209] There is, however, an undeniable evidentiary foundation capable of raising serious concerns about the state of her mental health, both before and after the killing, to find that, at least for the purposes of this constitutional inquiry, Ms. Ejigu suffers from a serious mental disability.

[210] Indeed, while the diagnosis of Dr. Semrau is different from that of Drs. Smith and Riley as to which mental disorders or psychoses Ms. Ejigu suffers from, they are in agreement that she has suffered and does now suffer from serious mental disorders.

[211] The validity of those diagnoses is also evidenced and affirmed by the following facts:

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1) While being held in custody after the killing of Ms. Hagos on September 1, 2011 Ms. Ejigu was, in both November of 2011 and in January of 2012, certified for admission requiring psychiatric care under the provisions of the British Columbia *Mental Health Act*, R.S.B.C. 1996, c. 288.

2) Since January of 2012 Ms. Ejigu has been held in the Forensic Psychiatric Hospital under the care of psychiatrists and other psychiatric staff under a designation of “fit but fragile” with respect to her fitness to stand trial.

[212] In many respects the underlying issues raised by Ms. Ejigu’s submissions concerning the alleged violation by ss. 16(2) and (3) of the *Code* of her s. 15(1) *Charter* rights as a mentally disabled person are similar to those raised under her fundamental principle of justice submissions under s. 7 of the *Charter* that a person who was not criminally responsible at the time of the offence should not be convicted.

[213] Although *Whaling* and *Harrer* both express a preference for dealing with a specific *Charter* guarantee covered under s. 11 rather than the broader fundamental principles of justice provisions of s. 7, neither adverts to the intersection between *Charter* rights protected by both s. 7 and s. 15(1).

[214] As La Forest J. said in *Harrer* (at para. 13) complementary *Charter* provisions may raise the same policy considerations.

[215] It may well be said in this case that the s. 15(1) equality rights invoked by Ms. Ejigu provide a more specific *Charter* guarantee than does the fundamental principle of justice under s. 7 that a person who was not criminally responsible at the time of the offence should not be convicted.

[216] For that reason and also because s. 15(1) *Charter* jurisprudence may serve to more fully inform the questions to be decided in this case, including the s. 1 justification issues that arise, I have decided I must also address Ms. Ejigu’s submission concerning the alleged violation of her s. 15(1) *Charter* rights based

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upon the alleged discrimination of mentally ill persons arising from the impugned provisions.

[217] The disadvantages suffered by the mentally ill in society and in the criminal justice system have been recognized by the Supreme Court of Canada on at least two occasions since *Chaulk* was decided in 1990.

[218] In *Swain* the Court held that the common law rule that allowed the Crown to raise the issue of the accused's sanity at the time of the offence over the objections of the accused violated the fundamental principle of justice under s. 7 of the *Charter* that an accused must have control of his or her defence.

[219] In doing so Lamer C.J. wrote at para. 39:

> 39. It is not difficult to see that the Crown's ability to raise independently the issue of insanity could very well interfere with other defences being advanced by the accused. For example, an accused who wishes to defend on the basis of alibi could very well be thwarted in this approach by the Crown's raising the inconsistent defence of insanity. It is also apparent that the Crown's ability to raise insanity could undermine an accused's credibility with the jury and could give rise to the inference that the accused is someone who would likely commit a crime. The mentally ill have historically been the subjects of abuse, neglect and discrimination in our society. The stigma of mental illness can be very damaging. The intervener, C.D.R.C., describes the historical treatment of the mentally ill as follows:
>
> > For centuries, persons with a mental disability have been systematically isolated, segregated from the mainstream of society, devalued, ridiculed, and excluded from participation in ordinary social and political processes.
>
> The above description is, in my view, unfortunately accurate and appears to stem from an irrational fear of the mentally ill in our society. While I have a very high regard for the intelligence and good faith of Canadian juries, it is nonetheless apparent that an accused's credibility could be irreversibly damaged by the Crown's raising evidence of insanity.
>
> [My emphasis.]

[220] The Chief Justice then went on to fashion a "new common law rule" that would not limit constitutionally protected rights and freedoms.

[221] Before doing so he considered (at para. 56) the "dual objectives" of the old common law rule that offended s. 7 of the *Charter*. He stated:

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> 56. … The common law rule is aimed not only at avoiding the unfair treatment of the accused but also at maintaining the integrity of the criminal justice system itself. The accused is not the only person who has an interest in the outcome of the trial; society itself has an interest in ensuring that the system does not incorrectly label insane people as criminals.
>
> [My emphasis.]

[222] In introducing the proposed new common law rule, he stated:

> 70. The dual objectives discussed above could be met without unnecessarily limiting *Charter* rights if the existing common law rule were replaced with a rule which would allow the Crown to raise independently the issue of insanity only after the trier of fact had concluded that the accused was otherwise guilty of the offence charged. Under this scheme, the issue of insanity would be tried after a verdict of guilty had been reached, but prior to a conviction being entered. If the trier of fact then subsequently found that the accused was insane at the time of the offence, the verdict of not guilty by reason of insanity would be entered. Conversely, if the trier of fact found that the accused was not insane, within the meaning of s. 16, at the time of the offence a conviction would then be entered.
>
> [My emphasis.]

[223] Among other things the Chief Justice then went on to consider whether the new common law rule would offend s. 15(1) of the *Charter* and concluded that it would not do so. At para. 87 he stated:

> 87. I cannot see how a rule which allows the Crown to move an individual from the category of those who will surely be convicted and sentenced to those who may be acquitted, albeit on the grounds of insanity, can be said to impose a burden or a disadvantage on that individual. In my view, to say otherwise is tantamount to saying that an accused has a right to be convicted and punished even though he or she does not have the mental capacity for criminal intent. This cannot be the case. As I have stated above, and think it useful to reiterate here, it is a principle of fundamental justice that the criminal justice system not convict a person who was insane at the time of the offence. That this is so dispels any suggestion that an accused somehow has a right to be wrongfully convicted.
>
> [My emphasis.]

[224] Before reaching that decision it must, however, be noted that, important to the issues now to be decided, he also said at paras. 84 and 85:

> 84. It must be acknowledged, however, that part of the new common law rule does distinguish between individuals on the basis of a personal characteristic which falls within the enumerated ground of mental disability. The new common law rule allows the Crown to raise evidence of insanity

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> after the trier of fact has concluded that the accused is otherwise guilty of the offence charged in cases where the Crown believes that the accused was insane at the time of the offence. If the Crown holds no such belief about an accused, that accused will be convicted and sentenced. It is only when the Crown believes that an accused was insane at the time of the offence that the accused will not be convicted and will instead be subject to a trial on the issue of insanity (with the Crown's being able to lead its evidence of insanity over and above the accused's wishes). Thus, in my view, it is clear that this aspect of the new common law rule draws a distinction between individuals such as Mr. Swain and others based on a personal characteristic; namely, insanity.
>
> 85. Furthermore, the fact that the claim involves the personal characteristic of insanity (which falls within the enumerated ground of mental disability) leaves no doubt in my mind that, if the differential treatment is "discriminatory" (which remains to be seen), the s. 15(1) claim fits within the overall purpose of remedying or preventing discrimination against groups suffering social, political and legal disadvantage in Canadian society. There is no question but that the mentally ill in our society have suffered from historical disadvantage, have been negatively stereotyped and are generally subject to social prejudice. However, the question remains: does this aspect of the new common law rule give rise to differential treatment under the law which is discriminatory? In other words, can it be said that part of the new common law rule imposes a differential burden, obligation or disadvantage or that it withholds or limits access to opportunities, benefits and advantages?
>
> [My emphasis.]

[225] *Swain* thus recognizes that:

1) The mentally ill have historically been the subject of abuse, neglect and discrimination in our society and have been negatively stereotyped and are generally subject to social prejudice; and

2) If differential treatment of the mentally ill under the criminal law is discriminatory, s. 15(1) of the *Charter* may be invoked to remedy that discrimination.

[226] What was never in issue in *Swain*, however, is whether the reverse onus upon the accused and imposition of the standard of proof on a balance of probabilities that the Court determined was saved by s. 1 of the *Charter* in *Chaulk* was violated by the accused's s. 15 equality rights as a mentally ill person.

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[227] What was also not discussed in *Swain* was the burden of proof and standard of proof that would apply concerning whether the accused was insane at the time of the offence that would apply if the Crown chose to raise the issue after a conviction was entered.

[228] In response to *Swain* in enacting ss. 16(2) and (3) of the *Code,* Parliament determined that whether it was the accused (either before or after conviction) or the Crown (after conviction) that put the mental capacity of the accused in issue, the burden of proof would be on that party to prove on a balance of probabilities that the accused was not criminally responsible by reason of mental disorder at the time of the offence.

[229] In further response to *Swain* Parliament also repealed s. 542(2) of the *Code* which the Court had found violated s. 7 of the *Charter* by allowing for automatic, indefinite detention of a not criminally responsible accused. In its place Parliament enacted an entirely different regime under Part XX.1 of the *Code.*

[230] That regime subsequently became the subject of the Court's decision in *Winko v. British Columbia (Forensic Psychiatric Institute),* [1999] 2 S.C.R. 625 [*Winko*], in which the accused challenged the constitutional validity of Part XX.1 of the *Code* under both s. 7 and s. 15(1) of the *Charter*.

[231] In rejecting those challenges McLachlin J. (as she then was) wrote (for the majority) at para. 3:

> 3 I conclude that Part XX.1 of the *Criminal Code* protects the liberty, security of the person, and equality interests of those accused who are not criminally responsible ("NCR") on account of a mental disorder by requiring that an absolute discharge be granted unless the court or Review Board is able to conclude that they pose a significant risk to the safety of the public. It follows that Part XX.1 does not deprive mentally ill accused of their liberty or security of the person in a manner contrary to the principles of fundamental justice. Nor does it violate their right to equal treatment under the law.

[232] In doing so, McLachlin J. discussed the history, structure and purpose of Part XX.1 of the *Code* which are important to an understanding of the complexities of the matters in issue in this case*.* At paras. 17 to 21 she wrote:

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17 Historically at common law, those who committed criminal acts while mentally ill were charged and required to stand trial like other offenders. At the end of the trial, they were either acquitted or convicted and sentenced accordingly. The common law permitted no special verdict or disposition. The only concession made to the illness that induced the offence was the accused's right to raise the defence that he or she was unable to understand the nature and quality of the act, the *M'Naghten Rules*: see *M'Naghten's Case* (1843), 10 Cl. & Fin. 200, 8 E.R. 718 (H.L.). The law held that such incapacity deprived the mentally ill accused person of the criminal intent or mens rea required for the offence. Sanity, however, was presumed; it was up to the accused to demonstrate the contrary.

18 Until 1990, the provisions of the *Criminal Code* dealing with criminal acts committed as a result of mental illness reflected the common law approach of treating those offences like any others, subject to the special defence of not understanding the nature and quality of the act. The only verdicts available under the *Criminal Code* were conviction or acquittal. However, even where the accused was acquitted on the basis of mental illness, he or she was not released, but was automatically detained at the pleasure of the Lieutenant Governor in Council: *Criminal Code*, s. 614(2) (formerly s. 542(2)) (repealed S.C. 1991, c. 43, s. 3).

19 The first *Charter* challenge against this system came in *R. v. Chaulk*, [1990] 3 S.C.R. 1303, where a majority of this Court ruled that the requirement that the accused prove an inability to understand the nature and quality of his or her act violated the accused's right to be presumed innocent, but that the burden was constitutionally saved under s. 1. A second *Charter* challenge came in *R. v. Swain*, [1991] 1 S.C.R. 933, where this Court struck down the provision for automatic, indefinite detention of an NCR accused on the basis that it violated the accused's s. 7 liberty rights.

20 In response to *Swain*, Parliament introduced sweeping changes by enacting Part XX.1 of the *Criminal Code* in 1991: *An Act to amend the Criminal Code (mental disorder) and to amend the National Defence Act and the Young Offenders Act in consequence thereof*, S.C. 1991, c. 43. Part XX.1 reflected an entirely new approach to the problem of the mentally ill offender, based on a growing appreciation that treating mentally ill offenders like other offenders failed to address properly the interests of either the offenders or the public. The mentally ill offender who is imprisoned and denied treatment is ill-served by being punished for an offence for which he or she should not in fairness be held morally responsible. At the same time, the public facing the unconditional release of the untreated mentally ill offender was equally ill-served. To achieve the twin goals of fair treatment and public safety, a new approach was required.

21 Part XX.1 rejects the notion that the only alternatives for mentally ill people charged with an offence are conviction or acquittal; it proposes a third alternative. Under the new scheme, once an accused person is found to have committed a crime while suffering from a mental disorder that deprived him or her of the ability to understand the nature of the act or that it was wrong, that individual is diverted into a special stream. Thereafter, the court or a Review Board conducts a hearing to decide whether the person should be kept in a secure institution, released on conditions, or unconditionally discharged. The

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> emphasis is on achieving the twin goals of protecting the public and treating the mentally ill offender fairly and appropriately.
>
> [My emphasis.]

[233] Of further importance are McLachlin J.'s observations with respect to the disadvantages suffered by the mentally ill in the criminal justice system. At paras. 35 and 36 of *Winko* she wrote:

> 35 If the NCR verdict is not a verdict of guilt or an acquittal, neither is it a verdict that the NCR accused poses a significant threat to society. Part XX.1 does not presume the NCR accused to pose such a threat. Rather, it requires the court or the Review Board to assess whether such a threat exists in each case. Part XX.1 thus recognizes that, contrary to the stereotypical notions that some may still harbour, the mentally ill are not inherently dangerous. The mentally ill have long been subject to negative stereotyping and social prejudice in our society based on an assumption of dangerousness: *Swain, supra*, at p. 994; *Battlefords and District Co-operative Ltd. v. Gibbs*, [1996] 3 S.C.R. 566, at p. 586. As Dr. Paul Mullen writes:
>
> > There is a widely held belief in our culture that the mentally ill are predisposed to act in a violent and dangerous manner... . This prejudice has deep roots. In Greek and Roman writings the defining characteristics of madness were violence in combination with being out of touch with reality and having a tendency to wander... . The origins of such beliefs probably lie in the unease which acutely mentally disturbed individuals produce in those around them. Their unpredictable, strange and often inappropriately intrusive behaviours easily produce a reaction of fear. When we experience fear, we all too readily attribute that fear to dangerousness in the exciting object, rather than considering whether our reactions may not be excessive or misplaced. The more frightened we become, the more dangerous we assume that which excites the fear is.
> >
> > ("The Dangerousness of the Mentally Ill and the Clinical Assessment of Risk", Chapter 4 in P*sychiatry and the Law: Clinical and Legal Issues*, W. Brookbanks, ed. (1996), 93, at p. 93.)
>
> 36 In 1975, the Law Reform Commission of Canada recognized that these negative stereotypes of the mentally ill had found their way into the criminal justice system:
>
> > This widely held fear of the mad criminal makes acceptable the confinement and lengthy detention of mentally disordered accused or offenders in circumstances which their "sane" counterpart would be either less severely sanctioned or released outright. These attitudes are reflected in the element of preventive detention implicit in the remand and dispositional provisions of the Criminal Code and in the choice of procedures of the personnel dealing with the mentally ill in the criminal process.

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> (Working Paper 14, *The Criminal Process and Mental Disorder*, at p. 14.)
>
> [My emphasis.]

[234] Finally, in determining that the provisions of s. 672.54 and Part XX.1 of the *Code* do not violate s. 15(1) of the *Charter,* McLachlin J. wrote for the Court at paras. 88 to 90:

> 88 This individualized process is the antithesis of the logic of the stereotype, the evil of which lies in prejudging the individual's actual situation and needs on the basis of the group to which he or she is assigned. As this Court recognized in *Law*, at para. 70:
>
> > As a general matter, as stated by McIntyre J. in *Andrews, supra*, and by Sopinka J. in *Eaton, supra*, and referred to above, legislation which takes into account the actual needs, capacity, or circumstances of the claimant and others with similar traits in a manner that respects their value as human beings and members of Canadian society will be less likely to have a negative effect on human dignity.
>
> The individualized scheme of Part XX.1, therefore, does not readily permit a finding of discrimination, as that term is understood in our s. 15(1) jurisprudence.
>
> 89 But individual treatment, by itself, cannot defeat a s. 15(1) claim: *Law*, at para. 70. A court must go further and assess the actual impact of the differential treatment on the claimant's dignity, always from the perspective of a "reasonable person, dispassionate and fully apprised of the circumstances, possessed of similar attributes to, and under similar circumstances as, the claimant" (para. 60). From this perspective, the key feature of Part XX.1 -- treating every NCR accused having appropriate regard to his or her particular situation -- <u>far from being a denial of equality, constitutes the essence of equal treatment from a substantive point of view. It does not disadvantage or treat unequally the NCR accused, but rather recognizes the NCR accused's disability, incapacity and particular personal situation</u> and, based upon that recognition, creates a system of individualized assessment and treatment that deliberately undermines the invidious stereotype of the mentally ill as dangerous. It treats NCR accused more appropriately and more equally.
>
> 90 Earlier in these reasons, I rejected the view that Part XX.1 perpetuates the view that all NCR are dangerous, or even presumptively dangerous. On the contrary, in neither its purpose nor its effect does the differential treatment mandated by Part XX.1 send a negative message to society about the NCR accused. Nor can it reasonably be understood to demean their dignity as individual human beings. Rather, the process it lays down and the treatment options for which it provides embody the message that every NCR accused is equally entitled to all protections available to other people, subject only to such constraints as may be required as a result of his or her illness in the interest of public safety. <u>In its purpose and effect, it reflects the view that NCR accused are entitled to sensitive care, rehabilitation and meaningful attempts</u>

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> to foster their participation in the community, to the maximum extent compatible with the individual's actual situation.
>
> [My emphasis.]

[235] The issue that arises in this case is, however, not whether the post-verdict provisions of the *Code* discriminate against mentally ill persons who are found to be NCRMD, but rather whether the way in which the finding of NCRMD is arrived at violates a mentally ill person's s. 15 *Charter* rights by reversing the burden and standard of proof from the Crown to the mentally ill accused to prove that he or she was NCRMD at the time of the offence.

[236] Ms. Ejigu submits that only if a mentally ill accused is able to establish that he or she was NCRMD at the time of the offence will he or she then have the benefit of the individualized regime under s. 672.54 and Part XX.1 of the *Code.*

[237] She submits that if a mentally accused cannot meet the reverse onus burden placed upon them to obtain the benefit of the individualized regime, but could have raised a reasonable doubt about their mental capacity at the time of the offence, he or she will be "wrongfully convicted".

[238] The Crown submits that Ms. Ejigu's submission that ss. 16(2) and (3) of the *Code* increase the risk of wrongful conviction of the mentally ill is misconceived. The Crown submits that s. 16 does the opposite because it applies only to the mentally ill and ensures those whose illness relieves them of responsibility for otherwise criminal activity are not the subject of a criminal conviction.

[239] The Crown further asserts that the argument that the requirement for the accused to prove the defence of NCRMD at time of the offence on a balance of probabilities creates a risk of wrongful conviction emphasizes that what is really being argued under s. 15(1) of the *Charter* is "…a s. 11(d) violation of exactly the sort found in *Chaulk.* The risk that some persons might be able to raise a reasonable doubt but cannot meet the burden on a balance of probabilities" and is thus "a re-packaging of the s. 11(d) violation found to be justifiable under s. 1 [of the *Charter*] in *Chaulk*".

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[240] It is, of course, important to recall that in *Chaulk* the majority found that the predecessor provisions to ss. 16(2) and (3) of the *Code* violated the presumption of innocence by permitting a conviction despite the existence of a reasonable doubt in the mind of the trier of fact as to the guilt of the accused.

[241] As the Crown has submitted, that violation of a constitutionally protected right was justified under s. 1 of the *Charter* because it avoided placing upon the Crown the impossibly onerous burden of disproving insanity [now the defence of NCRMD] and to thereby secure the conviction of the guilty.

[242] That justification under s. 1 of the *Charter* did not eliminate the possibility that a criminal conviction could result in spite of a reasonable doubt in the mind of the trier of fact of the accused. It excused that *Charter* breach.

[243] The Crown also submits that ss. 16(2) and (3) of the *Code* do not violate the provisions of s. 15(1) of the *Charter.*

[244] In making that argument the Crown submits that on its face the provisions are not discriminatory since they apply to all persons equally without regard to any of the enumerated categories in s. 15(1) of the *Charter* including that of mental disability.

[245] The Crown asserts that, as with Ms. Ejigu's arguments concerning the impugned provisions alleged discrimination against her as an African woman who suffers from linguistic and cultural disadvantages, her arguments concerning discrimination against her as a mentally ill person do not amount to more than unfortunate personal circumstances.

[246] The Crown thus submits that although her mental illness may cause Ms. Ejigu more difficulty in meeting the requisite burden of proof, that does not constitute a violation of s. 15(1) of the *Charter* because it does not perpetuate prejudice or stereotyping.

[247] In response Ms. Ejigu submits that the Crown's submissions reflect a formal equality approach that has been rejected by the Supreme Court of Canada

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beginning with *Andrews v. Law Society of British Columbia*, [1989] 1 S.C.R. 143, as well as more recently in *Taypotat* and *Quebec v. A.*

[248] In support of that argument Ms. Ejigu relies on the decision of this Court in *Inglis v. British Columbia (Minister of Public Safety),* 2013 BCSC 2309 [*Inglis*], in which Ross. J determined that the cancellation of a program in a women's correctional centre that permitted women who gave birth while incarcerated to have their babies with them while serving their sentence subject to the determination of the infant's best interests violated both the s. 7 and s. 15 *Charter* rights of both mothers and infants.

[249] Concerning the violation of s. 15(1) Ross J. wrote at paras. 598 and 599:

> [598] The defendants have argued that the decision to cancel the Program was not discriminatory because it was based upon the women's actual circumstances and because it treated all provincially incarcerated women the same in that none were permitted to have their children reside with them at the institution. This submission, in my view, relies upon a formal equality analysis that the Supreme Court of Canada has consistently rejected, starting with *Andrews*. It is clear that s. 15 can be violated by a law that treats everyone equally but produces a disproportionate impact. As stated by Chief Justice Lamer in *Rodriguez* at 549:
>
> > Even in imposing generally applicable provisions, the government must take into account differences which in fact exist between individuals and so far as possible ensure that the provisions adopted will not have a greater impact on certain classes of persons due to irrelevant personal characteristics than on the public as a whole. In other words, to promote the objective of the more equal society, s. 15(1) acts as a bar to the executive enacting provisions without taking into account their possible impact on already disadvantaged classes of persons.
>
> [599] While Lamer C.J.C.'s statement in *Rodriguez* was made in dissent, his approach was endorsed by the Court in *Eldridge* at para. 64.
>
> [My emphasis.]

[250] *Inglis* is also of assistance with respect to the Crown's submission that ss. 16(2) and (3) of the *Code* do not violate the s. 15(1) *Charter* equality rights of mentally ill persons because they do not perpetuate prejudice or stereotyping.

[251] At para. 602 in *Inglis* Ross J. wrote:

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> [602] I agree that the decision to cancel the Program was not based upon a stereotype that all incarcerated mothers are unfit to parent or pose a risk to their infants. As noted earlier, I have found that the decision to cancel the Program was based upon mandate, not an evaluation of risk. The decision was not one rooted in stereotypical thinking; however that is not the end of the analysis. In *Quebec v. A*, the majority rejected the assertion that a distinction may be found to be discriminatory only if it causes disadvantage through prejudice or stereotyping. As Justice Abella stated at para. 333:
>
> > An emphasis at this stage on whether the claimant group's exclusion was well motivated or reasonable is inconsistent with this substantive equality approach to s 15(1) since it redirects the analysis from the *impact* of the distinction on the affected individual or group to the legislature's *intent* or *purpose*. [emphasis in *Quebec v. A*.]

[252] As I have previously noted, in *Taypotat,* decided after *Inglis*, the Supreme Court of Canada endorsed the approach taken by Abella J. in *Quebec v. A.*

[253] *Taypotat* affirmed the decision in *Quebec v. A* that "if the state conduct widens the gap between the historically disadvantaged group and the rest of society rather than narrowing it, then it is discriminatory".

[254] The question to be answered therefore is: do ss. 16(2) and (3) of the *Code* widen the gap between mentally disabled accused persons and those accused who are not mentally disabled?

[255] In my view, the answer is unequivocally yes.

[256] I say that because:

1) The Crown acknowledged in its written submissions that: "Most accused seeking to defend themselves on the basis of s. 16 will obviously be mentally ill to some degree."

2) Aside from the defence of non-insane automatism, in no instance other than under s.16 of the *Code* is an accused person required to establish on a balance of probabilities a defence that will absolve them of criminal responsibility for otherwise criminal conduct.

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3) In all other cases (except non-insane automatism) if the accused is able to establish an evidentiary "air of reality" to a defence, the burden then is on the Crown to prove beyond a reasonable doubt that the defence does not apply.

[257] The following relatively simple examples illustrate how ss. 16(2) and (3) of the *Code* widen the gap between mentally disabled accused persons and those accused who are not mentally disabled.

[258] In the first case a woman is charged with second degree murder. In her defence the accused testified that she killed her abusive husband by stabbing him with a knife because she feared that if she did not kill him first he would kill her.

[259] In the second case a woman is also charged with second degree murder. In her defence the accused leads psychiatric evidence that she suffers from a delusional thought disorder. She then testified that she killed her husband because she believed that he was the devil and that if she did not kill him he would kill her.

[260] In the first case, if the court determines that there is an evidentiary air of reality to the proffered defence of battered woman's syndrome (per *R. v. Lavallee*, [1990] 1 S.C.R. 852), the Crown must prove beyond a reasonable doubt that the defence does not apply to excuse the accused's otherwise criminal conduct.

[261] In the second case, the accused must prove on a balance of probabilities that the defence of NCRMD applies to absolve her of criminal responsibility.

[262] I find that Ms. Ejigu has proven on a balance of probabilities that ss. 16(2) and (3) of the *Code* violate a mentally disabled accused's s. 15(1) *Charter* right to the equal protection and benefit of the law.

[263] As required by *Taypotat,* she has established that both facially and in substantive impact the impugned reverse onus and burden of proof provisions create a distinction on the basis of mental disability and impose burdens that have the effect of reinforcing, perpetuating and exacerbating the disadvantages of mentally ill persons.

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[264] That finding together with my earlier finding that the impugned provisions also breach the fundamental principle of justice under s. 7 of the *Charter* that a person who was not criminally responsible at the time of the offence should not be convicted, require consideration of whether the impugned provisions are justified under s. 1 of the *Charter*.

[265] Before undertaking that s. 1 *Charter* justification inquiry I must, however, also consider whether consideration of those *Charter* violations as well as any reconsideration of the s. 1 *Charter* ruling in *Chaulk* justifying the breach of s. 11(d) of the *Charter* are precluded by reason of the *stare decisis* principles informed by the recent *Bedford* and *Carter* jurisprudence.

### *F. Is the s. 1 ruling in Chaulk open to reconsideration by a lower court?*

[266] At para. 39 of these reasons I summarized the following principles derived from the Supreme Court of Canada's recent decisions in *Bedford* and *Carter*:

1) A lower court is not strictly precluded by *stare decisis* from revisiting an issue previously decided by a higher court;

2) The threshold for doing so is, however, a high one and is met only if:

    a) new legal issues, including arguments on *Charter* provisions not previously addressed or as a consequence of significant developments in the law, are raised; or

    b) there is a significant change in the circumstances or evidence upon which earlier decision was based which fundamentally shifts the parameters of the debate.

3) While both pre-conditions to reconsideration may be met in a given case, only one is necessary.

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[267] I will next discuss whether it is open for this Court to now reconsider the Supreme Court of Canada's 1990 s. 1 *Charter* ruling in *Chaulk* by reference to each of the principles enunciated in *Bedford* and *Carter.*

*1) Have new legal issues been raised since the decision in Chaulk?*

[268] Ms. Ejigu submits that the s. 1 *Charter* ruling in *Chaulk* is now open for reconsideration by me on three bases relating to new legal issues that have arisen since *Chaulk* was decided in 1990. They are:

1) My conclusions that ss. 16(2) and (3) of the *Code* violate the provisions of ss. 7 and 15(2) of the *Charter* in addition to the provisions of s. 11(d);

2) Legislative changes to the NCRMD provisions of the *Code*; and

3) Refinement by recent Supreme Court of Canada jurisprudence concerning the approach to be taken in addressing the proportionality analysis under s. 1 of the *Charter.*

[269] I will now address each of those issues.

*(a) New Charter violations*

[270] My findings that in addition to the breach of an accused's s. 11(d) *Charter* rights the NCRMD provisions the *Code* also violate:

a) the fundamental principle of justice under s. 7 of the *Charter* that a person who was not criminally responsible at the time of the offence should not be convicted; and

b) the s.15(1) *Charter* rights of mentally ill persons to the equal benefit and protection of the law,

meet the *Bedford/Carter* test to allow reconsideration of the decision in *Chaulk* because they were not argued in *Chaulk*.

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[271] The specific s. 7 *Charter* violation I have identified was not argued in *Chaulk* (although it was adverted to as an aspect of s. 11(d) by the majority at para. 73) and, as far as I am aware, was not explicitly recognized as a principle of fundamental justice by the Supreme Court of Canada until its judgment in *Swain* in 1991.

[272] It was then subsequently affirmed by the Court in 1998 in *Warsing* and more recently applied by the Ontario Court of Appeal in *I.E.M.* in 2003.

[273] Also, the specific issue of the disadvantages suffered by the mentally ill in society and the criminal justice system specifically identified in *Swain* were not directly addressed by the majority in *Chaulk.*

[274] While it may be argued that s. 1 *Charter* analysis in *Chaulk* indirectly adverts to those disadvantages, there is no specific recognition of them as a s. 15(1) *Charter* issue as there was in *Swain* or in the more fulsome exploration of the historical disadvantages faced by the mentally ill in society and the criminal justice system by the Court in 1999 in *Winko*.

[275] Whether my finding that the provisions of ss. 16(2) and (3) of the *Code* violate the fundamental principle of justice under s. 7 of the *Charter* that a person who was not criminally responsible at the time of the offence should not be convicted or my finding that the impugned provisions also violate the s. 15(1) *Charter* rights of mentally disabled accused to equal benefit and protection of the law are sufficient to change the result of the s. 1 *Charter* issues addressed in *Chaulk* is not the question at this juncture of the *Bedford/Carter* analysis.

[276] Those findings with respect to both additional *Charter* violations are, however, sufficient to allow this Court to embark upon reconsideration of the s. 1 *Charter* justification decision in *Chaulk* that was limited to the consideration of only the violation of s. 11(d) of the *Charter.*

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*(b) Changes to the NCRMD provisions of the Code*

[277] In addition to the s. 7 and s. 15(1) *Charter* breaches that were not addressed in *Chaulk,* other significant changes in the law concerning the NCRMD provisions of the *Code* have occurred since 1990.

[278] In 1991 changes were made to the provisions of the *Code* with the enactment of Part XX.1 in response to the Supreme Court of Canada's decision in *Swain*.

[279] Suffice to say that the 1991 changes were sweeping in substance and effect.

[280] The enactment of Part XX.1 of the *Code* and the creation of the new regime emphasising treatment of the NCRMD accused in place of the former provisions under which those found to be insane were automatically detained under the control of the state "at the pleasure of the Lieutenant Governor in Council" was not Parliament's only response to the Court's decision in *Swain*.

[281] In addition to those amendments, in 1991 Parliament also amended s. 16 of the *Code* to conform with the decision in *Chaulk* (decided under the previous s. 16(4) of the *Code*) by re-stating that the burden of proof for the defence of NCRMD is on the balance of probabilities and to provide that the burden of meeting that standard is on the party that raises the issue.

[282] The *Code* was also amended in another way in 1991 that is germane to the *Bedford* and *Carter* arguments advanced by Ms. Ejigu by the addition of ss. 672.11 and 672.12 which provided for the making of assessment orders by the court with respect to an accused person "at any stage of the proceedings" to among other things determine whether the accused was at the time of the alleged offence suffering from a mental disorder so as to be exempt from criminal responsibility by virtue of s. 16(1).

[283] Application for such an assessment order by the Crown is, however, limited by s. 672.12(3) to those situations where (a) "the accused puts his or her mental capacity for criminal intent into issue" or where (b) "the prosecutor satisfies the court

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that there are reasonable ground to doubt that the accused is criminally responsible for the alleged offence, on account of mental disorder".

[284] The provisions of ss. 672.11 and 672.12 of the *Code* are significantly different from the provisions in effect when *Chaulk* was decided (s. 543 of the *Code*) which then limited the power of the court to order an assessment or observation of the accused to issues related to his or her sanity at the time of trial and fitness to stand trial.

[285] Ms. Ejigu asserts that the ability of the Crown to apply for an assessment order by a psychiatrist chosen by the Crown when the accused puts his or her capacity for criminal intent in issue (as was done in this case and which order was made by me) seriously undermines the "impossible burden on the Crown" s. 1 *Charter* justification analysis in *Chaulk.*

[286] More recently, in 2014, Part XX.1 of the *Code* was amended by s. 672.64 of the *Code* by the addition of a process for designating accused determined to be NCRMD at the time of an offence as "High Risk Accused" which can result in an accused so designated being detained in a hospital on more strict provisions than would otherwise be applicable to an accused found to be NCRMD.

[287] In *R. v. Schoenborn,* 2015 BCSC 2254, those provisions were determined to have retrospective operation so that if Ms. Ejigu is found to be NCRMD in the murder for which she is now charged she will be at risk of being held under such a designation.

[288] I am satisfied that the various changes to the NCRMD provisions of the *Code* since 1991 are also sufficient to allow this Court to embark upon reconsideration of the s. 1 *Charter* justification decision in *Chaulk* that was based on the provisions existing at that time.

[289] Whether those changes to the provisions of the *Code* since *Chaulk* was decided are sufficient to change the result of the s. 1 *Charter* issues addressed in *Chaulk* is again not the question at this juncture of the *Bedford/Carter* analysis as to

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whether this Court is now permitted to reconsider the Supreme Court of Canadas decision in *Chaulk.*

> *(c) Refinement of proportionality analysis under s. 1 of the Charter*

[290] Ms. Ejigu also asserts that there have been refinements in the approach taken by the Supreme Court of Canada in the determination of s. 1 *Charter* issues in *Chaulk* that allow reconsideration of that justification analysis.

[291] In doing so, Ms. Ejigu relies on the Court's decision in *Alberta v. Hutterian Brethren of Wilson Colony*, 2009 SCC 37 [*Hutterian Brotherhood*] to submit that that those refinements permit this Court to "more fully account for the impact of the law on the interests at stake".

[292] I am satisfied that whether any alleged refinements do permit reconsideration is better addressed when the reconsideration that I have determined to be appropriate by reason of my finding of two *Charter* violations that were not considered in *Chaulk* as well as the effect, if any, of the changes to the *Code* since 1991 on the s. 1 *Charter* analysis of the Court in justifying the breach of s. 11(d) of the *Code* is undertaken.

> *2) Has there been a fundamental shift in the parameters of the debate due to changes in the circumstances or evidence upon which the decision in Chaulk was based?*

[293] Ms. Ejigu relies upon the jurisprudence of the Supreme Court of Canada since *Chaulk* was decided – principally *Swain* and *Winko* – which addressed the many disadvantages suffered by mentally ill people in not only Canadian society generally but also in the criminal justice system as significant changes in the circumstances addressed by the Court in *Chaulk* which she says have shifted the parameters of the debate.

[294] She also relies upon Parliament's reaction to the decision in *Swain* and the creation of the new statutory regime incorporating the dual objectives of protection of

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the public and treatment of those accused found to be NCRMD as a significant change to the circumstances existing in 1990 when *Chaulk* was decided.

[295] In addition to the jurisprudential and statutory changes that she relies upon as constituting a fundamental shift in the parameter of the debate, Ms. Ejigu asserts that societal changes have occurred since 1990 in the pursuit of substantive equality and a growing recognition that Canadian society is better served by ending historical trends that stigmatized and segregated the mentally ill.

[296] In support of that submission Ms. Ejigu relies upon the Canadian government's 2010 ratification of the United Nations *Convention on the Rights of Persons with Disabilities*; a 2012 report of the Mental Health Commission of Canada entitled "*Changing Directions, Changing Lives*"; the *Nova Scotia Health Court Report*; and, the website of the Yukon Territory's Community Wellness Court as evidence of changing social attitudes towards the treatment of the mentally ill and recognition of the need to integrate mental health facilities, social agencies and the court system to prevent over-criminalization of the mentally ill.

[297] The focus of those arguments is upon the proposition that the reverse onus and standard of proof provisions of ss. 16(2) and (3) of the *Code* create a risk of the "wrongful conviction" of a mentally ill accused who cannot establish the defence of NCRMD on a balance of probabilities but is capable of raising a reasonable doubt.

[298] Ms. Ejigu submits that, but for the impugned provisions, the ability of that accused to raise a reasonable doubt would result in a verdict of NCRMD followed by treatment under Part XX.1 of the *Code* rather than a wrongful conviction, further stigmatization as a dangerous mentally ill person and incarceration.

[299] She submits that the evolution of Canadian social values and recognition of the historical disadvantages faced by the mentally ill and the need for treatment of those who suffer from mental illness has shifted the parameters of the debate to such an extent that the imposition of the impugned burden on mentally disabled accused is no longer acceptable.

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[300] I do not doubt the validity of much of what is said in the material relied upon by Ms. Ejigu concerning the historical disadvantages suffered by the mentally ill in society and the over-representation of the mentally ill in the criminal courts.

[301] I also do not doubt that the integration of mental health facilities with social agencies and treatment based regimes to attempt to rehabilitate mentally ill offenders will, if adequately funded, better serve not only those who suffer from mental illness but society as a whole.

[302] I cannot, however, accept that the recognition of the historical disadvantages of the mentally ill or changing attitudes towards the treatment of the mentally ill in society and in the criminal justice system has fundamentally shifted the parameters of the debate with respect to the essential issues that were considered and decided by the majority in its s. 1 *Charter* analysis in *Chaulk.*

[303] I say that because:

1) Chief Justice Lamer was the author of the majority judgment in both *Chaulk* and *Swain.* I cannot accept that in *Swain*, decided the year after *Chaulk,* the Court became aware for the first time of disadvantages suffered by the mentally ill in society or the criminal justice system that were so important to the decision in *Swain* that led to the introduction of the dual treatment/protection regime in the enactment of Part XX.1 of the *Code.*

2) In *Winko,* at para. 36, McLachlin J. referred to the findings of the Law Reform Commission of Canada in 1975 which recognized that “negative stereotypes of the mentally ill had found their way into the criminal justice system”. It cannot be said that those identified problems and disadvantages were unknown in 1990 when *Chaulk* was decided.

3) The focus of the s. 1 *Charter* justification debate in *Chaulk* was not upon whether the accused’s rights were abrogated by the impugned provisions. The majority found that the reverse onus and standard of proof imposed upon

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a mentally ill accused violated the s. 11(d) *Charter* right of all accused to the presumption of innocence.

4) The focus of the s. 1 *Charter* justification debate was upon the objective of the impugned provisions, which the Court determined was to avoid placing on the Crown the "impossibly onerous burden of disproving insanity" and to thereby secure the conviction of the guilty, and whether that objective was sufficiently important to warrant the limiting of a constitutionally protected right, and, if so, whether the means chosen impaired that right as little as possible.

5) The debate in this case raises the same constitutional issues and while evolving social norms may have shifted the parameters to the extent that the disadvantages faced by the mentally ill are now better known and appreciated than in 1990, the debate remains fundamentally the same: is proof of NCRMD [insanity] by the Crown beyond a reasonable doubt an impossibly onerous burden and, if so, do the means chosen by Parliament limit constitutionally protected rights as little as possible?

[304] Ms. Ejigu has, accordingly, not satisfied me that there has been fundamental shift in the parameters of the debate, due to changes in the circumstances or evidence upon which the decision in *Chaulk* was based in addition to or different from the legal changes I have addressed, that would warrant reconsideration.

### *G. Reconsideration of the s. 1 Charter Justification in Chaulk*

[305] Before proceeding to reconsideration of the s. 1 *Charter* justification in *Chaulk* it is necessary to again review the basis upon which the decision was made and the specific conclusions reached.

[306] I will then consider whether the additional *Charter* breaches I have found or the changes to the *Code* or in the evolution of s. 1 *Charter* jurisprudence undermine the conclusion reached in *Chaulk* to such an extent that the decision should no longer be followed.

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*1) The section 1 Charter decision in Chaulk*

[307] In part III.B of these reasons I recorded in some detail the basis upon which the majority in *Chaulk* reached the conclusion that s. 16(4), the predecessor section to the now challenged ss. 16(2) and (3) of the *Code* was a reasonable limit on the presumption of innocence embodied in s. 11(d) of the *Charter*.

[308] For ease of reference and completeness with respect to the issues now engaged I will repeat and expand upon some of those aspects of the decision in *Chaulk.*

[309] In deciding that the impugned provisions of the *Code* were justified under s. 1 of the *Charter* notwithstanding their violation of the presumption of innocence the majority followed the procedure set out by the Court in *R. v. Oakes*, [1986] 1 S.C.R. 103 [*Oakes*].

[310] In doing so and in setting out that test Lamer C.J. wrote at para. 50:

> 50. There is no question that the presumption of innocence, guaranteed by s. 11(*d*) of the *Charter*, is a fundamental legal right which plays a very important role in our criminal justice system. It has been referred to as "the golden thread" of English criminal law (*Woolmington v. Director of Public Prosecutions*, [1935] A.C. 462 (H.L.), at pp. 481-82). However, like the other rights and freedoms guaranteed by the *Charter*, it is subject to limitations under s. 1 of the *Charter*. The procedure to be followed when the state is attempting to justify a limit on a right or freedom under s. 1 was set out by this Court in *Oakes*, *supra*:
>
> > 1. The objective of the impugned provision must be of sufficient importance to warrant overriding a constitutionally protected right or freedom; it must relate to concerns which are pressing and substantial in a free and democratic society before it can be characterized as sufficiently important.
> >
> > 2. Assuming that a sufficiently important objective has been established, the means chosen to achieve the objective must pass a proportionality test; that is to say they must:
> >
> > > (a) be "rationally connected" to the objective and not be arbitrary, unfair or based on irrational considerations;
> > >
> > > (b) impair the right or freedom in question as "little as possible"; and
> > >
> > > (c) be such that their effects on the limitation of rights and freedoms are proportional to the objective.

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[311] In applying the first aspect of the *Oakes* test the majority held (at para. 57) that the objective of the section was to avoid placing an impossible burden of proof on the Crown to prove sanity and thus secure the conviction of the guilty.

[312] Before reaching that conclusion Lamer C.J. addressed why he concluded that the "impossible burden of proof of the Crown" was the objective of the offending provisions. At paras. 52 to 55 he wrote:

> 52. In my opinion, with respect for contrary views, these characterizations of the objective miss the point. The factors cited by these parties are more connected to the objectives of s. 16(1) than to s. 16(4). In enacting s. 16(1), Parliament has made a law that no person shall be convicted of an offence committed while that person was insane; the objective of this law is to avoid stigmatizing and punishing, as criminals, people who are "sick" as opposed to "bad". In enacting s. 16(4), Parliament has made a law that any accused who alleges that he was insane at the time of the offence must prove his insanity on a balance of probabilities. Section 16(4) was not enacted to further the objective of s. 16(1); if anything, the onus imposed by s. 16(4) means that some "sick" people will be incorrectly stigmatized and punished as "bad" and, therefore, s. 16(4) actually hinders the objective cited by the Attorneys General for New Brunswick and Ontario.
>
> 53. Before characterizing the relevant objective, I feel that it is necessary to focus on what it is about s. 16(4) which violates s. 11(*d*). The problem with s. 16(4) is two-fold. First, the provision allows sanity (something which is essential to guilt) to be presumed. This violates the basic principle (set out in *Oakes*) that the state bears the burden of proving guilt beyond a reasonable doubt. Second, the provision requires an accused to prove his or her insanity, on a balance of probabilities, in order to rebut the presumption of sanity. This gives rise to a reversal of the burden of proof such that an accused could be found guilty of a criminal offence despite a reasonable doubt in the mind of the trier of fact about the accused's insanity.
>
> 54. It is therefore necessary to focus on the presumption and on the reversal of the burden of proof and ask: what was Parliament's specific objective in forcing an accused who raises s. 16 to prove his or her insanity on a balance of probabilities? **The answer can only be that Parliament wished to avoid placing on the Crown the impossibly onerous burden of disproving insanity and to thereby secure the conviction of the guilty (who are not "sick") by defeating acquittals based on a doubt as regards insanity.** Drawing an analogy to my (dissenting) reasons in *Schwartz, supra*, s. 16(4) is no more "particular or essential" to insanity legislation than s. 106.7(1) is to weapons legislation. **Section 16(4) is a purely evidentiary section whose objective is to relieve the prosecution of the tremendous difficulty of proving an accused's sanity in order to secure a conviction.**
>
> 55. The above characterization of the objective of s. 16(4) becomes clearer if one considers what would be the case if society's knowledge of the brain and of the nature of mental illness was suddenly and enormously

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> expanded. What if our state of knowledge and technology was such that a doctor could perform a simple test to conclusively determine whether a person was insane within the meaning of s. 16 at the time of the offence? If this were the case, s. 16(4) would not be justified (and would not pass even the first branch of the *Oakes* test). All that would be necessary would be a provision requiring an accused alleging insanity to submit to this test. The Crown would have the full burden of disproving insanity beyond a reasonable doubt in any case where insanity was raised by an accused. Note, however, that the remaining provisions in s. 16 (or very similar provisions) would still be necessary and desirable. The objective of avoiding the stigmatization and punishment of an individual under the criminal law and of maintaining the distinction between "bad" and "sick" offenders would still exist and would continue to be met by s. 16(1). If the objective of s. 16(4) is as stated by the Attorneys General for New Brunswick and Ontario, the section would prevail whatever society's state of knowledge. The fact that it would disappear if it became reasonably possible for the Crown to meet a claim of insanity illustrates that the essential objective of s. 16(4) is to relieve the Crown of the nearly impossible task of disproving insanity whenever it is raised.
>
> [Underlining in original. Bolded emphasis mine.]

[313] Under its analysis of the "proportionality" test in *Oakes* the majority first dealt with the rational connection aspect of that test. At para. 60 Lamer C.J. wrote:

> 60. If the Crown's formulation of the rational connection test is employed using the objective suggested above (i.e., to avoid placing a next to impossible burden on the Crown), the result is that s. 16(4) passes the rational connection test. Placing a burden on an accused who raises s. 16 to prove his or her insanity on a balance of probabilities certainly furthers the objective of not putting a burden on the Crown which is virtually impossible to meet. Thus, the presumption of sanity and the reverse onus embodied in s. 16(4) are rationally connected to the objective.

[314] In then discussing the second aspect of the *Oakes* proportionality test, as to whether the provisions impaired s. 11(d) "as little as possible", Chief Justice Lamer postulated two alternatives that could possibly intrude less upon the presumption of innocence than that chosen by Parliament.

[315] At para. 66 Lamer C.J. wrote:

> 66. … For example, Parliament could have enacted a provision which merely requires an accused alleging insanity to meet an evidentiary burden (i.e., raise a reasonable doubt), at which point the burden would shift to the Crown to disprove insanity (or prove sanity) beyond a reasonable doubt.

[316] At para. 69 he wrote:

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> 69. …Parliament could have enacted a provision which provided that when an accused raises insanity, he is required to raise a reasonable doubt as to his sanity in order to shift the burden to the Crown to disprove insanity (prove sanity) on a balance of probabilities. The provision could also state that if an accused wishes to raise insanity he must submit to psychiatric examinations at the request of the Crown.
>
> [My emphasis.]

[317] Concerning that second alternative Lamer C.J. continued at para. 69 by stating:

> 69. …These hypothetical provisions would also have to address the problem of obtaining evidence regarding insanity as of the time of the offence. Whether such a combination of insanity provisions would achieve the identified objective as effectively as does s. 16(4) is, of course, a matter of speculation. It is impossible to know what the effects of this alternative would be until it is put into practice.
>
> [My emphasis.]

[318] After considering arguments for and against each of those possible alternatives to the means chosen by Parliament, Lamer C.J. concluded:

> 70. … In enacting s. 16(4), Parliament may not have chosen the absolutely least intrusive means of meeting its objective, but it has chosen from a range of means which impair s. 11(*d*) as little as is reasonably possible. Within this range of means it is virtually impossible to know, let alone be sure, which means violate *Charter* rights the least. [Underlining in original.]
>
> 71. In summary, I conclude that s. 16(4) violates s. 11(*d*) as little as possible in achieving its objective. It is therefore necessary to address the last part of the proportionality test: are the detrimental effects of s. 16(4) on the presumption of innocence proportional to the objective?

[319] The Chief Justice then went on to discuss the third aspect of the "proportionality" test in *Oakes*, to determine whether the detrimental effect of the impugned provisions of s. 16(4) of the *Code* on the s. 11(d) *Charter* protected presumption of innocence was proportional to the objective of avoiding placing an impossible burden of proof on the Crown to prove sanity and thus secure the conviction of the guilty.

[320] In doings so, the Chief Justice noted that the onus on the accused to establish insanity at the time of the offence is not the full criminal burden and stated

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that a burden of only raising a reasonable doubt to rebut the presumption of sanity would defeat the "very purpose of the presumption of sanity"; "the objective would not be achieved"; and, that "any other means of achieving the objective could also give rise to violations of other *Charter* rights".

[321] He then concluded that the onus on the accused to establish sanity on a balance of probabilities was an "accommodation of three important societal interests".

[322] Those interests were identified as:

1) avoiding an impossible burden on the Crown;

2) convicting the guilty; and

3) acquitting those who truly lack the capacity for criminal intent.

[323] Most important to the issue raised by counsel for Ms. Ejigu concerning the possibility of the "wrongful conviction" of an accused who is unable to meet the civil standard of proof but could raise a reasonable doubt, Lamer C.J. said:

> 73. … The result of this compromise is that some guilty people will be acquitted and will be dealt with via the "L.G.W. system", and some insane (and therefore not guilty) people will be convicted and will be stigmatized and punished as criminals. Of course, this would still be the case if the burden on the accused were lowered so as to require him or her to raise a reasonable doubt as to insanity; some insane accused may be unable even to raise a reasonable doubt as to insanity. This result is the inevitable consequence of the uncertainty of our scientific knowledge and of our commitment (as expressed in s. 11(*d*)) not to convict those who were insane at the time of the offence.
>
> [My emphasis.]

[324] The Chief Justice thus concluded that:

> 74. While the effect of s. 16(4) on the presumption of innocence is clearly detrimental, given the importance of the objective that the Crown not be encumbered with an unworkable burden and given that I have concluded above that s. 16(4) limits s. 11 (*d*) as little as is reasonably possible, it is my view that there is proportionality between the effects of the measure and the objective.

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*2) Is the section 1 Charter justification decision in Chaulk still binding on this Court?*

[325] As I have previously discussed, but for the recent decisions of the Supreme Court of Canada in *Bedford and Carter,* the issues now raised by Ms. Ejigu would have been precluded from consideration by me by reason of the principles of *stare decisis*.

[326] I have, however, found that in addition to the violation of the presumption of innocence embodied in s. 11(d) of the *Charter,* the reverse onus and standard of proof provisions of ss. 16(2) and (3) of the *Code* also violate:

1) the fundamental principle of justice under s. 7 of the *Charter* that a person who was not criminally responsible at the time of the offence should not be convicted; and

2) a mentally disabled accused's s. 15(1) *Charter* right to the equal protection and benefit of the law.

[327] Those findings allow me to embark upon reconsideration of the decision in *Chaulk.*

[328] I have also found that significant changes to the NCRMD provisions of the *Code* since *Chaulk* was decided warrant that reconsideration.

[329] The fact that those pre-conditions to reconsideration of otherwise binding authority have been met does not, however, alter the further fact that the inquiry into whether reconsideration is available is only a threshold inquiry.

[330] In determining whether the authority in question is no longer binding the onus remains on the applicant for reconsideration to establish that the pre-conditions to reconsideration are so substantively significant that the previous authority must be found to no longer be justifiable.

[331] In this case that determination must be made by reference to the findings made and conclusions reached by Lamer J. on behalf of the majority in *Chaulk* in its

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s. 1 *Charter* analysis considered from the perspective of the additional *Charter* violations, changes to the NCRMD provisions, and the evolution of the Court's jurisprudence.

[332] Ms. Ejigu submits that a finding of *Charter* violations in addition to the breach of only s. 11(d) requires that the Crown justify those violations under s. 1 of the *Charter* "regardless of *Chaulk*".

[333] Ms. Ejigu also submits that the changes to the NCRMD provisions of the *Code* and the evolution of the jurisprudence of the Court recognizing the disadvantages suffered by mentally ill persons in society and by mentally ill accused in the criminal justice system undermine the continuing validity of the *Oakes* analysis in *Chaulk.*

[334] She further submits that although the *Oakes* framework for analysis applied in *Chaulk* still governs the determination of s. 1 *Charter* issues, the substance of the "proportionality" analysis in *Oakes* was refined by the Court's 2009 decision in *Hutterian Brotherhood* in ways that now permit this Court to "more fully account for the impact of the law on the interests at stake".

[335] I will address each argument in turn.

> *(a) Must the Crown justify the Charter violations of ss. 7 and 15(1) without regard to the s. 1 justification in Chaulk?*

[336] Counsel for Ms. Ejigu cited no authority for the proposition that the finding of additional *Charter* breaches required separate justification by the Crown without regard to a previous, otherwise binding, decision.

[337] Both *Bedford* and *Carter* were concerned with extensive evidentiary findings by the trial judges in those cases and the extent that deference was owed to trial judges in the context of constitutional litigation. In my opinion, those evidentiary findings and most specifically those made by Smith J. in *Carter* were at the root of and drove the decisions of the Supreme Court of Canada.

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[338] In this case I have made no evidentiary findings that could undermine the s. 1 analysis in *Chaulk* based on the substance of the violations of s. 7 or s. 15(1).

[339] While I have found that *Charter* violations have been established in addition to the one argued and established in *Chaulk*, I must also note the inter-connectedness of those violations to the violation of the presumption of innocence under s. 11(d) that was the subject of the s. 1 *Charter* analysis in *Chaulk*.

[340] The fundamental principle of justice embodied in s. 7 of the *Charter* that a person who was not criminally responsible at the time of the offence should not be convicted recognized by the Court in *Swain* and *Warsing* is an extension of the presumption of innocence that also requires that the Crown must prove the essential elements of the crime charged beyond a reasonable doubt.

[341] Both principles were under consideration in *Chaulk*.

[342] Similarly, my finding that ss. 16(2) and (3) of the *Code* violate a mentally disabled accused's s. 15(1) *Charter* right to the equal protection and benefit of the law recognizes that those laws of which protection and benefit is denied are the right to the presumption of innocence and the obligation of the Crown to prove guilt beyond a reasonable doubt.

[343] As I noted at para. 214 of these reasons, in *Harrer*, La Forest J. observed that complementary *Charter* provisions may raise the same policy considerations. In my view, so too do s. 1 *Charter* justification considerations.

[344] I am satisfied that in this case the policy considerations raised by ss. 11(d), 7 and 15(1) of the *Charter* in the context of the violation of those provisions by ss. 16(2) and (3) of the *Code* are so inter-connected that it would be wrong in principle to accede to the proposition that the Crown must justify each newly found breach under s. 1 of the *Charter* "regardless of *Chaulk".*

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*(b) Is the determination of legislative objective in Chaulk still valid?*

[345] Ms. Ejigu's submission on this issue is directed at the Court's determination that the objective of the reverse onus and standard of proof provisions in then s. 16(4) of the *Code* was to avoid placing on the Crown the impossible burden of proving sanity (now NCRMD) beyond a reasonable doubt and thus secure the conviction of the guilty.

[346] Ms. Ejigu takes specific exception to the "avoiding the impossible burden on the Crown" aspect of that characterization of Parliament's objective.

[347] Although she postulated no alternative legislative objective, Ms. Ejigu takes issue with whether meeting the usual criminal burden in cases where the accused raises NCRMD is, in fact, impossible or "virtually impossible".

[348] Ms. Ejigu relies upon the amendment of the *Code* in 1991 to place the burden of proof of NCRMD on the party raising the issue as a significant change in the circumstances upon which the decision in *Chaulk* was reached.

[349] As a consequence of those amendments, if the Crown now chooses to raise the issue of NCRMD, it must accept the burden imposed upon the Crown by Parliament of proving on a balance of probabilities that the accused did not, by reason of mental disorder, have the capacity at the time of the offence to be found guilty.

[350] Ms. Ejigu points to the decisions of the Ontario Court of Appeal *R. v. Ta* (2002), 58 O.R. (3d) 737 (C.A.) [*Ta*] and *R. v. Pietrangelo*, 2008 ONCA 449 [*Pietrangelo*] in submitting that the Crown seems to have managed the "impossible burden" in circumstances where it has raised the NCRMD issue post-verdict.

[351] Ms. Ejigu also submits that the amendments to the *Code* that, by the addition of ss. 672.11 and 672.12, now provide for the making of assessment orders with respect to accused "at any stage of the proceedings" if NCRMD is raised by the accused also cast doubt upon whether it still remains "virtually impossible" for the

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Crown to meet the burden of proof beyond a reasonable doubt required by the presumption of innocence.

[352] Ms. Ejigu further relies upon that amendment, the fact that the Crown availed itself of the ability to make such an application, and the fact of her subsequent psychiatric assessment by Dr. Semrau as probative of a lack of impediment to the Crown's ability to establish that the defence of NCRMD does not apply.

[353] In that same vein she relies upon the circumstances in this case in which she has been under the control of the state since the killing of Ms. Hagos and for most of that time has been held in the Forensic Psychiatric Hospital where the state has had access to her medical and psychiatric condition and records.

[354] She submits that in those circumstances there is no impossible burden on the Crown because the Crown has at least equal access to the same evidence as she does concerning her mental condition.

[355] Ms. Ejigu further submits that the very recent decision of the Supreme Court of Canada in *R. v. Borowiec*, 2016 SCC 11 [*Borowiec*] establishes that proof beyond a reasonable doubt by the Crown of a defence based on a "disturbed mind" is not only not impossible but required by the infanticide provisions of the *Code.*

[356] The concerns raised by Ms. Ejigu with respect to the "impossible burden on the Crown" conclusions reached by the Court in *Chaulk* do give rise to concerns about the Court's consideration of the impact of the "impossible burden of proof" in determining the objective of Parliament in enacting the impugned provisions of the *Code*.

[357] I do not. however, accept that those concerns undermine the Court's determination of Parliament's objective to such an extent that it is now open for this Court to determine that Parliament enacted ss. 16(2) and (3) of the *Code* to achieve some other unidentified objective.

[358] I say that because:

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1) The amendments to the *Code* in 1991 to place the burden of proof of NCRMD on a balance of probabilities on the party raising the issue do not address the *Charter* protected right at issue in the justification analysis under consideration in *Chaulk*, which concerned the presumption of innocence and the requirement of proof to the essential elements of the offence charged beyond a reasonable doubt.

2) Cases such *Ta* and *Pietrangelo* illustrate only that the Crown may be able to meet the burden of proof of NCRMD on the balance of probabilities but say nothing about proof beyond a reasonable doubt.

3) The amendments to the *Code* providing for assessment orders at the request of the Crown when an accused raises the issue of NCRMD do have the potential to ease the burden on the Crown to disprove the defence. The possibility of the accused raising the defence being required to submit to a psychiatric examination at the request of the Crown was in fact considered by Lamer C.J. at para. 69 in *Chaulk.* However, while considered as a possibility, the Chief Justice also noted that the provisions would have to "address the problem of obtaining evidence regarding insanity as of the time of the offence".

4) The amendments to the *Code* providing for psychiatric assessment do not compel the co-operation of the accused and do not address the "time of the offence" problem identified in *Chaulk.* Thus, while a mandated assessment would likely lessen the burden on the Crown to prove beyond a reasonable doubt that the defence of NCRMD does not apply, it is still not possible to know what the effect of the assessment would be.

5) Ms. Ejigu's reliance on her own co-operation with the assessment by Dr. Semrau at the request of the Crown, as well as the fact of the equal access of the Crown to evidence of her mental state after the time of the killing of Ms. Hagos, would obviously significantly lessen the burden of the Crown to prove that the defence of NCRMD does not apply in this case if that

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burden was upon the Crown. However, those factors still do not answer the problem identified in *Chaulk* about a burden on the Crown to prove beyond a reasonable doubt the state of mind of the accused *at the time that the offence is alleged to have occurred*.

6) While the decision in *Borowiec* does tend to show that the burden of proving the mental state of an accused person at the time of an offence beyond a reasonable doubt is not impossible, the fact that what was in issue in *Borowiec* were the infanticide rather than the NCRMD provisions of the *Code* does not allow me to conclude that the objective of Parliament ascertained by the Court in *Chaulk* have been overtaken by considerations that were not addressed.

[359] Neither the evidence on this application nor the changes in the NCRMD provisions of the *Code* or the jurisprudence of the Supreme Court of Canada convince me that this Court may now interfere with the determination in *Chaulk* that Parliament's objective in enacting ss. 16(2) and (3) of the *Code* was to avoid placing an impossible burden on the Crown and thus secure the conviction of the guilty.

*(c) Is the "proportionality" analysis in Chaulk still valid?*

[360] In contesting the continuing validity of the "proportionality" analysis in *Chaulk* Ms. Ejigu submits the *Oakes* test, as refined by the Court's decision in *Hutterian Brotherhood,* permits this Court to decline to follow *Chaulk* in order to "more fully account for the impact of the law on the interests [of the accused] at stake".

[361] At the heart of that argument is the submission that the violation by ss. 16(2) and (3) of the *Code* of the s. 15(1) *Charter* equality rights of a mentally ill accused such as Ms. Ejigu is not recognized or is insufficiently recognized by the Court's s. 1 *Charter* proportionality analysis in *Chaulk.*

[362] She submits that the unacceptable risk of "wrongful conviction", criminal stigmatization and preclusion of access to the treatment aspects of the provisions of Part XX.1 of the *Code* flowing from the justification of the reverse onus and burden

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of proof provisions of ss. 16(2) and (3) of the *Code* that broaden rather than narrow the discriminatory gap between mentally ill and other accused can no longer be tolerated by a society and justice system that recognizes the historical disadvantages faced by mentally ill accused.

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[363] To put those arguments in perspective and for the sake of convenience I will summarize the proportionality analysis and conclusions in *Chaulk* (which I detailed in full at paras. 313 to 324 of these reasons) by which the majority:

1) Decided that the legislative objective is rationally connected to means chosen to attain that objective.

2) Concluded that the means chosen impaired s. 11(d) "as little as possible" and in doing so posited two alternatives that could possibly intrude less upon the presumption of innocence than that chosen by Parliament (by requiring the accused to meet an evidentiary burden to raise a reasonable doubt about his sanity to shift the burden to disprove insanity beyond a reasonable doubt, or by requiring an accused to raise a reasonable doubt as to his sanity to shift the burden to the Crown to disprove insanity on a balance of probabilities).

3) After considering arguments for and against each of those possible alternatives to the means chosen by Parliament, concluded that although the means chosen was not necessarily the absolutely least intrusive means of meeting, its objective was within a range of means that impaired the presumption of innocence "as little as reasonably possible".

4) In discussing whether the detrimental effect of the impugned provisions was proportional to the objective of avoiding placing an impossible burden of proof on the Crown to prove sanity and thus secure the conviction of the guilty, acknowledged that the compromise embodied in the impugned provisions was that "some guilty people will be acquitted and dealt with via the L.G.W. system" and also that "<u>some insane (and therefore not guilty) people will be convicted and will be stigmatized and punished as criminals</u>". [My emphasis]

5) In considering the issue raised by counsel for Ms. Ejigu concerning the possibility of what she characterizes as a "wrongful conviction" of an accused who is unable to meet the civil standard of proof but could raise a reasonable doubt, stated that the same "would be the case if the burden on the accused was lowered so as to require him or her to raise a reasonable doubt as to insanity because some insane accused may be unable to even raise a reasonable doubt as to insanity". [My emphasis]

6) Decided that notwithstanding the existence of the possibility of a "wrongful conviction", if a burden on the accused only required the raising of a reasonable doubt to rebut the presumption of sanity: the "very purpose of the presumption of sanity would be defeated"; "the objective [of Parliament] would not be achieved"; and "any other means of achieving the objective could also give rise to violations of other *Charter* rights".

[364] Faced with the choices available, given the important objective of Parliament, the majority concluded that the reverse onus and requirement that the accused prove insanity on a balance of probabilities limited the presumption of innocence "as little as is reasonably possible" and achieved proportionality between the effects of the measure and its objective.

[365] Ms. Ejigu challenges the continuing validity of that conclusion.

[366] Relying upon the decision in *Hutterian Brotherhood* she submits that the acknowledged possibility in *Chaulk* that the burden of proof on a balance of probabilities that some insane (and therefore not guilty) people will be convicted and will be stigmatized and punished as criminals can no longer be justified as a proportionate means of meeting the objective of Parliament.

[367] In *Hutterian Brotherhood* the Supreme Court of Canada was concerned with the regulation enacted by the Government of Alberta requiring photographs for all Alberta driver's licences. That universal requirement replaced a previous

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discretionary policy which allowed special licences without photographs to be issued to those who objected to the taking of their photograph on religious grounds.

[368] The applicant, Hutterian Brotherhood of Wilson County, challenged the constitutional validity of the new regulations. The case proceeded before the Courts on the basis that the universal photograph requirement constituted a limit on the freedom of religion of those members of the Wilson colony who wished to obtain a driver's licence and thus infringes s. 2(a) of the *Charter.*

[369] The contest at all levels of court was whether that violation of s. 2(a) was justifiable under s. 1 of the *Charter.* The chambers judge and the Alberta Court of Appeal (with one dissent) concluded that the infringement of the applicant's freedom of religion could not be saved by s. 1 of the *Charter.*

[370] In a 4:3 decision the majority of the Supreme Court of Canada concluded that the limit on religious freedom was justified under s. 1 of the *Charter*. The majority judgment was delivered by McLachlin C.J.

[371] The majority concluded that the Province of Alberta established that the goal or objective of the legislation being to ensure the integrity of the driver's licencing system so as to minimize identity theft associated with that system is prescribed by law and is pressing and substantial.

[372] In its three stage proportionality analysis the majority first found that the limit on religious freedom was rationally connected to the goal of preserving the integrity of the driver's licencing system. In doing so, McLachlin C.J. wrote at para. 51:

> [51] … The issue at the stage of rational connection is simply whether there is a rational link between the infringing measure and the government goal. The balance between positive and negative effects of the measure falls to be considered at the final stage of the s. 1 analysis.

[373] Concerning the second stage of the proportionality inquiry as to whether the limit on a constitutionally protected right is minimally impaired by the challenged legislation she wrote at para. 53:

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> [53] The question at this stage of the s. 1 proportionality analysis is whether the limit on the right is reasonably tailored to the pressing and substantial goal put forward to justify the limit. Another way of putting this question is to ask whether there are less harmful means of achieving the legislative goal. In making this assessment, the courts accord the legislature a measure of deference, particularly on complex social issues where the legislature may be better positioned than the courts to choose among a range of alternatives.
>
> [My emphasis.]

[374] At para. 55 McLachlin C.J. further observed:

> [55] I hasten to add that in considering whether the government's objective could be achieved by other less drastic means, the court need not be satisfied that the alternative would satisfy the objective to *exactly* the same extent or degree as the impugned measure. In other words, the court should not accept an unrealistically exacting or precise formulation of the government's objective which would effectively immunize the law from scrutiny at the minimal impairment stage. The requirement for an "equally effective" alternative measure in the passage from *RJR-MacDonald*, quoted above, should not be taken to an impractical extreme. It includes alternative measures that give sufficient protection, in all the circumstances, to the government's goal: *Charkaoui v. Canada (Citizenship and Immigration)*, 2007 SCC 9, [2007] 1 S.C.R. 350. While the government is entitled to deference in formulating its objective, that deference is not blind or absolute. The test at the minimum impairment stage is whether there is an alternative, less drastic means of achieving the objective in a real and substantial manner. As I will explain, in my view the record in this case discloses no such alternative.
>
> [My emphasis.]

[375] Ms. Ejigu relies upon those observations to submit (at para. 63 of her Reply Submissions) that this passage reflects an evolution of the law in that while the s. 1 analysis:

> … still calls for deference to the legislature in pursuing its objective and does not require the perfect mechanism for achieving its objective the government is also not entitle to the most effective mechanism if reasonable alternatives are available that are less infringing on the *Charter* rights in issue.

[376] She further submits that the minimal impairment analysis in *Chaulk* applied an over-exacting definition of the legislature's objective that permitted for no meaningful consideration of alternatives that might better balance the interests at stake.

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[377] In resolving the minimal impairment question at issue in *Hutterian Brotherhood* McLachlin C.J. concluded at para. 62 that:

> [62] I conclude that the universal photo requirement minimally impairs the s. 2 (*a*) right. It falls within a range of reasonable options available to address the goal of preserving the integrity of the driver's licensing system. All other options would significantly increase the risk of identity theft using driver's licences. The measure seeks to realize the legislative goal in a minimally intrusive way.

[378] In explaining the minimum impairment inquiry where the validity of a law is at issue McLachlin C.J. also stated at paras. 65 to 66:

> [65] The courts below approached minimum impairment in a different fashion. First, they conducted the balancing inquiry at the stage of minimal impairment. Second, drawing on this Court's decision in *Multani*, the courts below applied a reasonable accommodation analysis instead of the *Oakes* test.
>
> [66] In my view, a distinction must be maintained between the reasonable accommodation analysis undertaken when applying human rights laws, and the s. 1 justification analysis that applies to a claim that a law infringes the *Charter.* Where the validity of a law is at stake, the appropriate approach is a s. 1 *Oakes* analysis. Under this analysis, the issue at the stage of minimum impairment is whether the goal of the measure could be accomplished in a less infringing manner. The balancing of effects takes place at the third and final stage of the proportionality test. If the government establishes justification under the *Oakes* test, the law is constitutional. If not, the law is null and void under s. 52 insofar as it is inconsistent with the *Charter*.
>
> [My emphasis.]

[379] On the question of the distinction between a reasonable accommodation analysis of minimal impairment and the required analysis under *Oakes* where the validity of a law of general application is at stake the Chief Justice further observed at para. 69:

> [69] … A law's constitutionality under s. 1 of the *Charter* is determined, not by whether it is responsive to the unique needs of every individual claimant, but rather by whether its infringement of *Charter* rights is directed at an important objective and is proportionate in its overall impact. While the law's impact on the individual claimants is undoubtedly a significant factor for the court to consider in determining whether the infringement is justified, the court's ultimate perspective is societal. The question the court must answer is whether the *Charter* infringement is justifiable in a free and democratic society, not whether a more advantageous arrangement for a particular claimant could be envisioned.

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> [My emphasis.]

[380] She then concluded the minimal impairment analysis of the proportionality inquiry by stating at para. 71:

> [71] In summary, where the validity of a law of general application is at stake, reasonable accommodation is not an appropriate substitute for a proper s. 1 analysis based on the methodology of *Oakes*. Where the government has passed a measure into law, the provisions of s. 1 apply. The government is entitled to justify the law, not by showing that it has accommodated the claimant, but by establishing that the measure is rationally connected to a pressing and substantial goal, minimally impairing of the right and proportionate in its effects.

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[381] In considering the third stage of the proportionality inquiry as to whether the effects of the law are disproportionate to its objective the majority in *Hutterian Brotherhood* assessed the salutary effects of the law followed by an assessment of its detrimental effects and then weighed both to reach the conclusion that the limit on religious freedom arising from the universal photograph regulations was justified.

[382] Ms. Ejigu relies upon the majority's analysis of the function of this third stage of the proportionality analysis in challenging the continuing validity of the Court's justification analysis in *Chaulk.*

[383] She specifically relies upon paras. 74 and 75 of the majority decision in which McLachlin C.J. wrote:

> [74] In *Oakes*, Dickson C.J. explained the function of this third and final step of the proportionality analysis:
>
> > Some limits on rights and freedoms protected by the *Charter* will be more serious than others in terms of the nature of the right or freedom violated, the extent of the violation, and the degree to which the measures which impose the limit trench upon the integral principles of a free and democratic society. Even if an objective is of sufficient importance, and the first two elements of the proportionality test are satisfied, it is still possible that, <u>because of the severity of the deleterious effects of a measure on individuals or groups, the measure will not be justified by the purposes it is intended to serve. The more severe the deleterious effects of a measure, the more important the objective must be if the measure is to be reasonable and demonstrably justified in a free and democratic society</u>. [pp. 139-40]

> [75] Despite the importance Dickson C.J. accorded to this stage of the justification analysis, it has not often been used. Indeed, Peter W. Hogg argues that the fourth branch of *Oakes* is actually redundant: *Constitutional Law of Canada* (5th ed. Supp.), vol. 2, at section 38.12. He finds confirmation of this view in the fact that he is unable to locate any case in which this stage of the analysis has been decisive to the outcome. In his opinion, this is because it essentially duplicates the analysis undertaken at the first stage, pressing and substantial objective. If a law has an objective deemed sufficiently important to override a *Charter* right and has been found to do so in a way which is rationally connected to the objective and minimally impairing of the right, Hogg asks rhetorically, how can the law's effects nonetheless be disproportionate to its objective? In his view, a finding that a law's objective is "pressing and substantial" at the first stage of *Oakes* will *always* produce a conclusion that its effects are proportionate. The real balancing must be done under the heading of minimal impairment and, to a much more limited extent, rational connection.
>
> [76] It may be questioned how a law which has passed the rigours of the first three stages of the proportionality analysis — pressing goal, rational connection, and minimum impairment — could fail at the final inquiry of proportionality of effects. The answer lies in the fact that the first three stages of *Oakes* are anchored in an assessment of the law's purpose. Only the fourth branch takes full account of the "severity of the deleterious effects of a measure on individuals or groups". As President Barak explains:
>
> > Whereas the rational connection test and the least harmful measure test are essentially determined against the background of the proper objective, and are derived from the need to realize it, the test of proportionality (*stricto sensu*) examines whether the realization of this proper objective is commensurate with the deleterious effect upon the human right. . . . It requires placing colliding values and interests side by side and balancing them according to their weight. [p. 374]
>
> In my view, the distinction drawn by Barak is a salutary one, though it has not always been strictly followed by Canadian courts. Because the minimal impairment and proportionality of effects analyses involve different kinds of balancing, analytical clarity and transparency are well served by distinguishing between them. Where no alternative means are reasonably capable of satisfying the government's objective, the real issue is whether the impact of the rights infringement is disproportionate to the likely benefits of the impugned law. Rather than reading down the government's objective within the minimal impairment analysis, the court should acknowledge that no less drastic means are available and proceed to the final stage of *Oakes*.
>
> [Emphasis added by counsel for Ms. Ejigu.]

[384] Ms. Ejigu submits that the justification analysis in *Chaulk* failed to address the issues identified in *Hutterian Brotherhood* that should have been considered at the final stage of the s. 1 proportionality analysis.

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[385] She submits that the *Hutterian Brotherhood* approach to proportionality should now be applied by me in reconsidering the ruling in *Chaulk* because of that evolution of the jurisprudence and the existence of *Charter* violations that were not part of the analysis in *Chaulk.*

[386] More specifically, she asserts that, contrary to the approach identified and followed by the majority in *Hutterian Brotherhood,* the justification analysis in *Chaulk*:

1) focusses only on minimal impairment to achieve the government's objective instead of a true balance between the beneficial and detrimental effects of the legislation; and

2) contains no real weighing of the benefits of the impugned provisions versus the detrimental impact of a "wrongful conviction" of a mentally ill accused.

[387] Ms. Ejigu submits that the detrimental effects are profound because the justification analysis in *Chaulk* tolerates a significant risk that an accused who is not criminally responsible will be convicted of a criminal offence. She says further that every "wrongful conviction" is a serious threat to the integrity of the administration of justice and takes a serious toll on the convicted individual and in the case of a mentally ill accused has the additional dire consequence that he or she will be imprisoned rather than treated.

[388] Ms. Ejigu submits that the result of a justification analysis that applies the approach of the majority in the *Hutterian Brotherhood* decision is that ss. 16 (2) and (3) of the *Code* should be declared unconstitutional because they violate the s. 7, s. 11(d) and s. 15(1) *Charter* rights of mentally ill accused persons and cannot be justified under s. 1 of the *Charter.*

[389] The practical consequence of that result would be that the Crown will be required to prove beyond a reasonable doubt that the defence of NCRMD does not apply in any case in which there is an air of reality to that defence.

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[390] The Crown submits that the *Hutterian Brotherhood* decision represents a clarification of the law, not a substantial change to it. In addition, the Crown points out that Ms. Ejigu has not identified any reasonably available alternatives or proposed a workable alternative that would not interfere with the means chosen by the legislature and approved by the Court in *Chaulk*.

## IV. DECISION

[391] I am, in many respects, sympathetic to the arguments advanced by Ms. Ejigu. The question is not, however, whether I would implement a different means of resolving the competing societal interests in the way chosen by Parliament in enacting the impugned NCRMD provisions of the *Code.* This is not a matter of first instance.

[392] The question for this Court is whether the otherwise binding decision in *Chaulk* has been so overtaken by newly found *Charter* breaches, legislative changes or the evolving jurisprudence of the Supreme Court of Canada that it is no longer binding.

[393] By choosing to achieve the objective identified in *Chaulk* by enacting the reverse onus and burden of proof provisions of ss. 16(2) and (3) of the *Code*, Parliament has opted to impair the presumption of innocence and has also singled out the mentally ill from other members of society by lessening the burden on the Crown which applies with respect to virtually all other defences to criminal offences.

[394] By enacting Part XX.1 of the *Code* in response to the Court's decision in *Swain* Parliament has also, however, recognized historical disadvantages and discrimination suffered by mentally ill accused persons by implementing a post-trial regime that is focussed on treatment and assessment to reduce the threat to the public posed by those who are found not criminally responsible rather than have them incarcerated under the previous L.G.W. system.

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[395] More recent decisions of the Supreme Court of Canada, including *Winko* and *Warsing*, also recognize the discrimination and disadvantages faced by the mentally ill in the criminal justice system that were identified by Chief Justice Lamer in *Swain.*

[396] Those amendments to the NCRMD provisions of the *Code* since *Chaulk* and *Swain* and the judicial recognition of the historical disadvantages of the mentally ill in society and in the criminal justice system do not, however, address the stark reality of the competing societal interests identified in *Chaulk* on the objective of Parliament in enacting the impugned legislation in contravention of the presumption of innocence that was then and is now the subject of the s. 1 justification issue.

[397] While I have found that the impugned provisions also violate the fundamental principle of justice embodied in s. 7 of the *Charter* that a person who is not criminally responsible at the time of an offence should not be convicted and the s. 15(1) rights of mentally ill accused to the equal benefit and protection of the law, I have also concluded that those additional *Charter* violations are so closely connected to the violation of s. 11(d) that they do not significantly alter the justification debate other than to reinforce recognition of the disadvantages faced by mentally ill persons in society and in the criminal justice system.

[398] While Ms. Ejigu equates the inability of a mentally ill accused to prove the lack of criminal capacity to a “wrongful conviction” and says that the decision in *Chaulk* condones such “wrongful convictions”, that characterization of the justification analysis by the majority in *Chaulk* does not respond to the conclusion that a requirement that the Crown prove sanity (disprove insanity) *at the time of the commission of the offence* beyond a reasonable doubt is a virtually impossible burden.

[399] While issue can be taken with that finding, as Ms. Ejigu has done, there is no evidence before me capable of establishing that the conclusion reached by the majority is no longer valid.

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[400] The fact that the Crown is required to meet the burden of proving insanity at the time of the offence, if the Crown raises the issue after a guilty verdict has been reached, does not also support a conclusion that the Crown is capable of proving insanity at the time of the commission of the offence beyond a reasonable doubt.

[401] Accordingly, the question now before me, as it was before the Court in *Chaulk,* is whether the means chosen by Parliament to meet the competing societal interests of avoiding a virtually impossible burden on the Crown, convicting the guilty and acquitting those who truly lack the capacity for criminal intent can be justified by application of the *Oakes* three stage proportionality analysis.

[402] Ms. Ejigu submits that the decision in *Hutterian Brotherhood* refines the *Oakes* analysis to such an extent that:

1) At the “minimal impairment stage of the analysis” Parliament is not entitled to the most effective method of meeting its objectives if other reasonable alternatives are available; and

2) At the “proportionality between deleterious effects” stage of the analysis the impact of the means chosen by Parliament to meet its objectives must more fully account for their impact upon those affected.

[403] I am not satisfied that the approach identified and taken in *Hutterian Brotherhood* so refines the *Oakes* analysis that a previous decision of the Supreme Court of Canada that approached the justification issue in a way that may not have fully accorded with the approach in *Hutterian Brotherhood*, is for that reason, open to reconsideration by a lower court.

[404] I say that because:

1) The s. 1 justification analysis in *Hutterian Brotherhood* was concerned with a legislature’s infringement of different *Charter* rights (the s. 2(a) right to freedom of religion) than those engaged in *Chaulk*.

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2) The majority in *Hutterian Brotherhood* recognized that the seriousness of an infringement of a *Charter* protected right "varies from case to case" depending on the nature of the freedom violated, the extent of the violation and the degree to which the infringement trenches upon the freedom protected.

3) The majority also observed (at para. 89) that:

> [89] There is no magic barometer to measure the seriousness of a particular limit on a religious practice. Religion is a matter of faith, intermingled with culture. It is individual, yet profoundly communitarian. Some aspects of a religion, like prayers and the basic sacraments, may be so sacred that any significant limit verges on forced apostasy. Other practices may be optional or a matter of personal choice. Between these two extremes lies a vast array of beliefs and practices, more important to some adherents than to others.

4) In many respects that somewhat amorphous nature of the protected *Charter* right drove the majority's weighing of the competing salutary and deleterious effects of the universal requirement for photographs on driver's licences in concluding that the otherwise unconstitutional law was saved by s. 1 of the *Charter.*

5) The *Charter* rights violated by the provisions of ss. 16(2) and (3) of the *Code* are not so nuanced and of necessity given the objective of Parliament in enacting the impugned provisions the s. 1 justification analysis in *Chaulk* was less nuanced than in *Hutterian Brotherhood.*

[405] I am accordingly satisfied that while I should pay heed to the approach taken by the majority in *Hutterian Brotherhood* to the proportionality analysis in *Oakes*, I have also concluded that the approach does not entitle me to substitute my opinions for those of the majority in *Chaulk*.

[406] My reconsideration of the justification analysis in *Chaulk* is not unlimited. It is constrained by those factors that, applying *Bedford and Carter*, I have identified allow reconsideration.

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[407] I will proceed to my consideration of the proportionality analysis in *Chaulk* with those limitations in mind.

*1) Rational connection*

[408] The question to be answered at this stage is whether the means chosen to obtain the identified objective of Parliament is rationally connected to that objective.

[409] The majority in *Chaulk* said at para. 60:

> 60. … Placing a burden on an accused who raises s. 16 to prove his or her insanity on a balance of probabilities certainly furthers the objective of not putting a burden on the Crown which is virtually impossible to meet. Thus, the presumption of sanity and the reverse onus embodied in s. 16(4) are rationally connected to the objective.

[410] That conclusion is not undermined by the existence of the violations of ss. 7 and 15(1) of the *Charter* that I have found, by amendments to the NCRMD provisions of the *Code* or by the jurisprudence of the Supreme Court of Canada since *Chaulk* was decided in 1990.

[411] Also, Ms. Ejigu did not challenge that rational connection conclusion other than to argue that the burden on the Crown to prove insanity at the time of the offence is not virtually impossible.

[412] I have not accepted that argument.

[413] I find that the conclusion in *Chaulk* that the impugned reverse onus provisions of the *Code* are rationally connected to the objective of Parliament identified by the majority in *Chaulk* is not open to reconsideration.

*2) Minimal impairment*

[414] In *Chaulk,* at paras. 66 and 69, the majority considered possible alternatives to the means chosen by Parliament to meet its objective once the accused has put his or her criminal capacity in issue.

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[415] Those included:

1) Proof by the Crown of the accused's insanity at the time of the offence beyond a reasonable doubt (para. 66); and

2) Proof by the Crown of the accused's insanity at the time of the offence on a balance of probabilities (para. 69);

[416] That discussion also included concerns about the infringement of other *Charter* rights that could arise if the accused was compelled to submit to psychiatric examinations or if the Crown was only required to prove insanity on a balance of probabilities.

[417] After considering the arguments for and against a lesser burden of proof on the accused than that chosen by Parliament the majority concluded at para. 70:

> 70. … In enacting s. 16(4), Parliament may not have chosen the absolutely <u>least</u> intrusive means of meeting its objective, but it has chosen from a range of means which impair s. 11(*d*) as little as is reasonably possible. Within this range of means it is virtually impossible to know, let alone be sure, which means violate *Charter* rights the <u>least</u>.
>
> [Emphasis in original.]

[418] Ms. Ejigu submits that *Hutterian Brotherhood* establishes that Parliament is not entitled to the most effective method of meeting its objectives if other reasonable alternatives are available.

[419] While that proposition may well apply in cases where there may be discrete alternatives that will proportionately balance the objectives of government with the infringement of the rights embodied in the means chosen, in this case Ms. Ejigu did not suggest any alternative to the impugned provisions other than proof by the Crown of the accused's insanity at the time of the offence beyond a reasonable doubt.

[420] That alternative was considered and rejected in *Chaulk* and I am satisfied that the majority's conclusion that if an accused were able to rebut the presumption of sanity by raising a reasonable doubt as to his or her sanity "the very purpose of the

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presumption of sanity would be defeated and the objective [of the reverse onus provisions] would not be achieved" remains true.

[421] Whether the same would be so if the alternative was to require the Crown to prove insanity on a balance of probabilities (notwithstanding concerns with other *Charter* rights) is more doubtful but, as I will later discuss that is not an option that is now available to this Court.

[422] I am also satisfied that the majority's conclusions on the minimal impairment inquiry in *Chaulk* are not rendered invalid by the violations of ss. 7 and 15(1) of the *Charter* that I have found or by amendments to the NCRMD provisions of the *Code* since *Chaulk* was decided.

[423] I accordingly find that the conclusion in *Chaulk* that the reverse onus provisions of s. 16 of the *Code* impair the *Charter* rights of a mentally ill accused as little as is reasonably possible is not open to reconsideration.

*3) Proportionality between Effects and Objective*

[424] Ms. Ejigu submits that the proportionality analysis in *Chaulk* is seriously flawed when compared with the *Hutterian Brotherhood* approach. She asserts that it is subject to reconsideration and should not continue to apply because it is only concerned with the achievement of the government's objective rather than weighing and balancing the benefits of that objective against the profoundly detrimental impact of a wrongful conviction on a mentally ill accused.

[425] There is no question that the analysis undertaken by the majority in *Chaulk* at this stage of the *Oakes* proportionality inquiry is less rigorous than that undertaken by the Court in *Hutterian Brotherhood.*

[426] I am satisfied that in large measure that is so because of the extensive analysis undertaken by majority in *Chaulk* at the minimal impairment stage.

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[427] That does not, however, mean that I am able or required to reweigh the beneficial aspects of the legislation from the perspective of Parliament's objective against the detrimental impacts on the accused asserted by Ms. Ejigu.

[428] I say that because it cannot be said that the majority in *Chaulk* was unaware of or did not consider the serious detrimental impact of a finding of guilt upon a mentally disabled person who could raise a reasonable doubt about his or her sanity but not be able to meet the burden of proving insanity at the time of the offence.

[429] The majority adverted to that possibility in paras. 43 and 53 when considering the objective of the legislation. It also considered the possibility directly in para. 69 when analyzing the proportionality between the objective and effects of the reverse onus provisions.

[430] The issue was also obviously of sufficient concern and debate that it resulted in Wilson J. delivering a dissenting opinion in *Chaulk* in which she stated at para. 144:

> 144. I pause here to emphasize that, in my view, by analogy to the presumption of innocence, it is better that a guilty person be found not guilty by reason of insanity and committed for psychiatric treatment than an insane person be convicted of a crime.

[431] It is also entirely unlikely that the majority was unaware of the historical disadvantages faced by mentally ill accused in society and in the criminal justice system given that one year later those specific concerns were addressed by the Court in *Swain* in which Chief Justice Lamer again wrote the majority opinion.

[432] I am accordingly satisfied that while the majority's decision in *Chaulk* may not have weighed or balanced the beneficial and detrimental effects of the offending legislation in a way that would favour the positon now advanced by the accused, it did consider both the benefits and detriments in reaching its conclusion.

[433] I am also satisfied while I, like Wilson J. in dissent in *Chaulk*, might disagree with the majority's conclusions on the proportionality between the objective and effects of the reverse onus provisions, those conclusions are not substantively

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effected by the violations of ss. 7 and 15(1) of the *Charter* that I have found or by amendments to the NCRMD provisions of the *Code* since *Chaulk* was decided.

[434] In saying that, I have specifically considered ss. 672.11 and 672.12 of the *Code* which, unlike the provisions in effect when *Chaulk* was decided, now permit the Crown to apply for a psychiatric examination of an accused who raises NCRMD as an issue.

[435] While those provisions have the potential to make it more likely that the Crown could meet the burden of proving sanity beyond a reasonable doubt, the fact than an accused may refuse to co-operate or co-operate less than fully convinces me that that change to the *Code* is not sufficient for me to not be bound by *stare decisis* to follow the Court's decision in *Chaulk.*

## V. COMMENTARY

[436] I must observe that if this was a matter of first instance and I was not bound by *stare decisis* to follow the majority decision of the Supreme Court of Canada in *Chaulk* and other authorities, including *Heywood* and *Schachter,* I would have reached a different conclusion.

[437] I would have concluded that the reverse onus provisions of ss. 16(2) and (3) of the *Code* should be read down to provide that in any case where an air of reality concerning the criminal capacity of the accused at the time of the commission of the offence is raised, the Crown bears the burden of proving that the accused is not criminally responsible under s. 16 of the *Code* on a balance of probabilities.

[438] In my opinion, such a provision would not place an impossible burden on the Crown to secure a criminal conviction where the defence of NCRMD is raised without merit and would lessen the risk that an accused who could raise a reasonable doubt but could not prove his or her incapacity on a balance of probabilities would be convicted notwithstanding an otherwise valid defence.

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[439] Such a provision would also accord with and rationalize the provisions in s. 16(3) of the *Code* that provides that the Crown bears the burden of proving NCRMD on a balance of probabilities if the Crown, rather than the accused, puts the accused's mental capacity in issue.

[440] While I recognize that other *Charter* protections could be offended by such a provision, I am also satisfied that it would infringe upon ss. 7, 11(d) and 15(1) of the *Charter* less than do the present provisions.

[441] Those are, however, matters for consideration by Parliament or by the Supreme Court of Canada if it chooses to revisit these issues.

## VI. CONCLUSIONS

[442] In summary and result, in answer to Ms. Ejigu's Notice of Constitutional Question, I make the following findings and declarations:

1) I find and declare that ss. 16(2) and (3) of the *Code* violate the provisions of ss. 7, 11(d) and 15(1) of the *Charter.*

2) I find and declare that those violations of ss. 7, 11(d) and 15(1) of the *Charter* are justified under and saved by application of s. 1 of the *Charter*.

"Mr. Justice Davies"

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